

Digest of Principles

Every cross-cutting doctrine tagged in the corpus, classified by subject. · 7 September 2026

423

PRINCIPLES

2665

 CASE-
APPLICATIONS

2193

TAGGED CASES

2193

CASES IN CORPUS

28

 LEADING (10+
CASES)

17

 SUBJECT
CLASSES

Drawn from the **principle_tags** field of the lean per-case records (tag · application · lead authorities · pins). Each principle is filed once, under the subject that best describes it. A principle applied in ten or more cases is marked leading. Where a principle has more than ten case-applications, the card names ten (significant cases first) and records the remainder as *N more*. Within each class, principles are ordered by the number of case-applications, then alphabetically. An A–Z index is at the end. Significant cases are cited as **SCJ_NNNN_S**.

■ Leading — 10 or more cases
 ■ Extensive — 5 to 9 cases
 ■ Recurring — 2 to 4 cases
 ■ Isolated — a single case

How to read a card: the title is the kebab-case tag, rendered in prose. The paragraph is the richest *application* recorded for that tag. Chips are the named cases that carry it, with year and court. A green chip is a *significant* decision.

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A. Statutory architecture, vires & interpretation 16 principles · 30 case-applications

How the Code is read against the Act: hierarchy, retrospectivity, headings, and ultra vires.

A-01 No retrospective operation of supply code clause 6 cases

A Supply Code clause cannot be applied retrospectively to fasten liability arising from a disconnection that pre-dates the Code's coming into force.

 SCJ_631 · Chandrika Prasad Pandey 2012 All HC

 SCJ_1316 · Stay of PLA independent-feeder directi... 2015 All HC

 SCJ_1464 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 All HC

 SCJ_1466 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 All HC

 SCJ_1467 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 All HC

 SCJ_268 · Vijay Lakshmi 2013 HC

A-02 Supply code regulation cannot exceed parent act s.174 overriding 4 cases

The Supply Code is subordinate legislation framed under the Electricity Act; by s.174 the Act overrides and the Code cannot travel beyond the Act's assessment limits.

LEAD AUTHORITIES *Pankaj Kumar v. Kanpur Electric Supply Company and others; Vijay Pal Singh & Another v. Dakshinanchal Vidyt Vitran Nigam Ltd & others*

SCJ_698_S · Raj Kumar 2013 All HC

SCJ_678 · Sri Dauji Cold Storage Pvt Ltd And Ano... 2018 All HC

SCJ_227 · Vijay Pal Singh & Another 2010 All HC

SCJ_228 · Vijay Pal Singh 2010 All HC

A-03 Clause heading not a limit on substantive scope 3 cases

Clause 6.5(b)'s heading ('Disputed Bills and Arrears') does not confine its scope; a supplementary bill grounded in a disputed meter reading is a disputed bill within the clause — resonates with the marginal-heading-not-an-aid-to-construction principle already tracked in this corpus (SCJ-059/060, Chandler v. DPP line).

SCJ_083 · Mohamdabad Cold Storage Private Ltd. (... 2007 All HC

SCJ_086 · Mother India Refrigeration Industries ... 2007 All HC

SCJ_153 · Mohd. Sagir 2014 All HC

A-04 Code liberally construed for consumer 3 cases

Supply Code regulations, being terms dictated by a monopoly supplier, are to be liberally interpreted in favour of the consumer; load-enhancement agreements are treated as continuations of the initial agreement.

SCJ_328_S · Ghanshyam 2026 All HC

SCJ_891 · Vinay Kumar Goyal 2012 All HC

SCJ_035 · Jharkhand State Electricity Board & Ot... 2021 SC

A-05 Statute prevails over supply code 3 cases

Where the Supply Code's assessment-rate provision is discrepant with the governing statute (Section 126(6)), the statute prevails.

LEAD AUTHORITIES *Pankaj Kumar v. Kanpur Electric Supply Company and others; Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.*

SCJ_698_S · Raj Kumar 2013 All HC

SCJ_640 · Venus Stone Crushing Co. Thru' Partner... 2010 All HC

SCJ_059 · Modern Rice Mill 2011 All HC

A-06 Legal fiction carried to logical end 1 case

When the Supply Code / Section 126 deems assessed energy to be consumed, the fiction must be given full effect and the assessed units treated as sales.

SCJ_010 · BSES Rajdhani Power Ltd. 2022 SC

A-07 Marginal heading not aid to construction 1 case

A clause's marginal heading (e.g. 'Defective Meters' for Clause 5.6) does not restrict its substantive scope; general principle of statutory construction applied to a Supply Code clause.

LEAD AUTHORITIES *Chandroji Rao v. CIT; Padmaraje R. Kadambande v. CIT; Guntaiah & Others v. Hambamma & Others*

SCJ_059 · Modern Rice Mill 2011 All HC

A-08 Precedent under superseded provisions does not govern post 2005 code 1 case

A judgment delivered under the provisions in force before the 2005 Code does not aid an applicant where the Code has since introduced a new mandatory requirement.

LEAD AUTHORITIES *Rajesh Kumar Gupta v. State of U.P.*

SCJ_236 · Iftakhar Ahsan 2014 All HC

A-09 Rerc open access regulations vires 1 case

Not a Supply Code case — a wholesale/open-access regulatory dispute over the validity of the Rajasthan Electricity Regulatory Commission (Terms and Conditions for Open Access) Regulations, 2016, challenged by captive power plants (CPPs) and inter-state open-access consumers as ultra vires the Electricity Act, 2003..

SCJ_110 · Ramayana Ispat Pvt. Ltd. & Anr. 2025 SC

A-10 Sc precedent retrospective unless expressly prospective 1 case

Reaffirms, in an electricity-penalty-circular context, the general rule that judicial precedent (including a Supreme Court ruling correcting a High Court's erroneous statutory/circular interpretation) applies retrospectively to pending disputes unless the deciding court expressly limits it to prospective operation.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Lohia Brass (P) Ltd.*; *Union of India v. Mohd. Ramzan Khan*

SCJ_128 · Chandra Mohan Goyal 2018 All HC

A-11 Statutory contract silence does not bar statutory power 1 case

General administrative-law doctrine (statutory power survives contractual silence, subject to the Indian Aluminium exception for express valid fetters) with potential cross-application to electricity tariff/circular-enhancement disputes in this corpus (cf. SCJ-128's retrospective-circular-application doctrine, SCJ-123's clause-enforcement holding).

LEAD AUTHORITIES *Indian Aluminium Co. v. Kerala State Electricity Board*; *State of Rajasthan v. J.K. Synthetics*

SCJ_134 · The State of Haryana & Ors. 2026 SC

A-12 Statutory supply code supersedes administrative memorandum 1 case

A statutory Electricity Supply Code (framed under the ERC's statutory mandate) overrides and supersedes a pre-existing administrative office memorandum on the same subject, from the Code's effective date, given the Code's statutory character versus the memorandum's mere administrative character — a useful precedent on the hierarchy between statutory Supply Code provisions and non-statutory licensee...

SCJ_137 · U.P. Avas Evam Vikas Parishad & Anr. 2011 SC

A-13 Supply code not confined to s.50 subjects s.181 rulemaking 1 case

The Supply Code is regulation-making under s.181 (and s.86(1) 'supply'), not limited to the subjects listed in s.50; fiscal/protective provisions are within power.

SCJ_255 · Suvidha Engineers India Ltd. 2009 All HC

A-14 Supply code read as whole not piecemeal 1 case

Provisions of the Supply Code must be construed together, in context, not in isolation — a specific clause (Clause 4.38(c)) cannot be relied upon divorced from the licensee's parallel obligations (Clause 4.36/6.15).

LEAD AUTHORITIES *Grasim Industries Ltd. v. Collector of Customs*; *Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra*

SCJ_113 · Satya Narayan 2013 All HC

A-15 Unilateral acceptance of successor code estops challenge to predecessor 1 case

A party that unilaterally accepts a charge/obligation under a successor Supply Code cannot consistently dispute an analogous charge under the code's statutory predecessor for the same underlying reasons.

SCJ_137 · U.P. Avas Evam Vikas Parishad & Anr. 2011 SC

A-16 Vires challenge requires pleaded foundation 1 case

A challenge to the vires of a Supply Code clause (here Clause 4.3(f)(v), on the ground Directors fall outside the s.2(15) 'consumer' definition) cannot be entertained where raised only in oral rejoinder submissions without any foundation laid in the writ petition itself.

SCJ_090 · Narendra Singh Panwar 2023 All HC

B. Duty to supply & access to a connection 16 principles · 124 case-applications

Section 43, occupier and tenant connections, indemnity bonds, and mandamus to connect.

B-01 Clause 4.4 occupant connection on indemnity bond 95 cases

A tenant/occupier may obtain a new electricity connection via the Annexure 4.2 indemnity-bond route where the landlord withholds consent; this reinforces and extends the Clause 4.4 occupant-connection principle already tracked in this corpus (SCJ-085, Mohd. Ashfaq Khan) to the new-connection (not just restoration) context, and explicitly holds that landlord-consent refusal cannot be an absolute bar.

SCJ_810_S · Ratan Housing Development Ltd. 2010 All HC

SCJ_926_S · Tanveer Azam 2012 All HC

SCJ_1197_S · Hem Chand Saini 2014 All HC

SCJ_1206_S · Chandra Kala Singh 2014 All HC

SCJ_1342_S · Hemant Kumar 2015 All HC

SCJ_1820_S · Sunita Kalra 2018 All HC

SCJ_1836_S · Pramod Kumar Sharma 2018 All HC

SCJ_2006_S · Achchaye Lal Yadav 2019 All HC

SCJ_2019_S · Ram Sagar Prajapati 2019 All HC

SCJ_401_S · Guddi Kesarwani 2025 All HC 85 more

B-02 Duty to supply survives extinguishment of right to recover 4 cases

On extinguishment of the right to recover, if a duty to supply is cast under the Electricity Act, 2003, the licensee cannot escape performing that duty and must energise the connection.

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board; West Bengal State Electricity Distribution Co. Ltd. v. Sri Vasavi Industries Ltd.*

SCJ_681_S · Trinmurti Buildwell Pvt Ltd 2010 All HC

SCJ_655_S · Lakshmi Oil And Vanaspati Pvt. Ltd. 2010 All HC

SCJ_270 · HSA Traders 2023 All HC

SCJ_267 · S.K. Construction Co. 2023 All HC

B-03 Occupier entitled to connection on indemnity bond 4 cases

A genuine occupier (including a family member in separate possession) has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; the bond only excludes trespassers/house-grabbers.

LEAD AUTHORITIES *Seema Mansoor v. U.P. Power Corporation Ltd.; Seema Mansoor v. U.P. Power Corporation; Chandu Khamaru v. Nayan Malik*

SCJ_601_S · Harish Agrawal 2024 All HC

SCJ_342_S · Uma Chauhan 2025 All HC

SCJ_027 · Gaurav Sharma 2018 All HC

SCJ_033 · Husna Bano 2019 All HC

B-04 Owner consent mandatory for new connection clause 4.4 4 cases

A new connection to an occupier/tenant requires the owner's consent under Clause 4.4(a)(vi); absent that consent no mandamus to connect can issue.

SCJ_1026 · Ashwani Kumar 2013 All HC

SCJ_1031 · Priya Tiwari 2013 All HC

SCJ_528 · Petitioner 2025 All HC

SCJ_236 · Iftakhar Ahsan 2014 All HC

B-05 Landlord consent not required for tenant connection s.43 3 cases

Under the s.43 duty to supply to an owner or occupier, a tenant/occupier cannot be refused a new connection merely because the landlord objects or withholds consent.

LEAD AUTHORITIES *Chandu Khamaru v. Nayan Malik*

SCJ_904_S · Abdul Waheed 2012 All HC

SCJ_210 · Radhe Shyam Singh 2014 All HC

SCJ_265 · Sushama Chowdhary 2014 All HC

B-06 Landlord noc refusal in dispute no bar to tenant connection 2 cases

A connection cannot be declined to a tenant merely because the landlord refuses a no-objection certificate, especially in a landlord-tenant dispute.

SCJ_293 · Neelam Gupta 2026 All HC

SCJ_272 · Mohd. Rizvan 2023 All HC

B-07 Occupier needs proof of occupancy plus indemnity bond clause 4.4 2 cases

A non-owner occupier may obtain a connection on an indemnity bond (Annexure 4.2) in lieu of owner's consent, but only on producing proof of occupancy (PoA / rent receipt / registered lease).

SCJ_338 · Jayant Singh 2025 All HC

SCJ_249 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 All HC

B-08 Pending private dispute no ground to deny supply 2 cases

A pending private/ownership dispute between the applicant and third parties is not a ground to deny the owner/occupier his statutory right to supply under s.43.

SCJ_1206_S · Chandra Kala Singh 2014 All HC

SCJ_264 · Chandu Khamaru 2011 SC

B-09 Clause 4.1 fourth proviso bar on new connection for premises with outstanding dues 1 case

The respondent-Department urged the fourth proviso to Clause 4.1 of the U.P. Electricity Supply Code, 2005 as barring a fresh connection for a premises against which dues are outstanding in the name of the existing connection holder; the contention was recorded but left undecided.

SCJ_1986 · Vishun Kumar Agrawal & Anr. 2023 All HC

B-10 Indemnity bond as condition of new connection 1 case

On the licensee's statement that supply would be given if the applicant furnished a bond in terms of Annexure 4.2 of the U.P. Electricity Supply Code, 2005, the writ was disposed of with a direction to release the connection within two weeks of a properly formatted bond..

SCJ_813 · Neena Rani 2010 All HC

B-11 New connection co owner consent writ vs pending partition suit 1 case

Where a co-owner seeks to restrain the distribution licensee from granting a new connection to another occupant without co-owner consent under the U.P..

SCJ_1416 · Pokhpal 2016 **All HC**

B-12 New connection disputed title indemnity bond 1 case

Disputed title of the premises is not a ground to refuse a new electricity connection. At most the licensee may take an indemnity bond under Annexure 4.2 of the Electricity Supply Code, 2005, even if the applicant is not the owner..

SCJ_334_S · Mohd. Nadeem Siddiqui 2026 **All HC**

B-13 New connection prescribed application 1 case

A Division Bench of the Allahabad High Court dismissed a writ seeking a new electricity connection in the petitioner's name for a house he had purchased. Counsel for the licensee informed the Court that no application had been moved in the prescribed format under the U.P. Electricity Supply Code, 2005..

SCJ_1714_S · No mandamus for a new connection witho... 2017 **All HC**

B-14 New connection title dispute indemnity 1 case

A pending civil title dispute is not a ground to refuse a new electricity connection. Following Smt..

SCJ_1260 · Neelam Sharma 2014 **All HC**

B-15 Occupier must be authorised 1 case

The right of a tenant/occupier to a connection under the Code presupposes authorised occupation; it does not extend to a person against whom an unstayed eviction decree operates. (Qualifies the tenant-occupier entitlement recognised in Anand Kumar / SCJ-006.)

LEAD AUTHORITIES *Anand Kumar v. State of U.P.*

SCJ_021 · Ashok Kumar Sharma & Another 2024 **All HC**

B-16 S.43 duty to supply owner or occupier correlative right 1 case

Sections 42(1)/43(1) impose a duty to supply an owner or occupier on application and confer a correlative statutory right to obtain supply.

SCJ_264 · Chandu Khamaru 2011 **SC**

C. Arrears, transferee & occupier liability 20 principles · 78 case-applications

Who pays predecessor dues: premises charge, auction purchasers, landlords and directors.

C-01 Arrears run with the premises 41 cases

IMPORTANT QUALIFICATION: the K.C. Ninan arrears-run-with-premises doctrine (SCJ-037) is confined to ordinary/non-insolvency transfers; where the premises were acquired through an IBC liquidation auction and the licensee has itself submitted a claim to the Liquidator for the same dues, IBC s.238 overrides the Electricity Act/Supply Code first-charge provisions and the licensee's sole recourse is the IBC waterfall...

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 AII HC

SCJ_821_S · Balajee Laboratories 2011 AII HC

SCJ_1340_S · Mohd. Mohsin 2018 AII HC

SCJ_1955_S · Mahesh Verma Agro Food Corporation Pvt... 2019 AII HC

SCJ_1959_S · Mahaveer Singh Chauhan 2019 AII HC

SCJ_689 · Pushpa Jain 2010 AII HC

SCJ_963 · Santosh Kumar Yadav 2012 AII HC

SCJ_1077 · New connection withheld for predecesso... 2013 AII HC

SCJ_1172 · Sneha Devi 2014 AII HC

SCJ_1235 · Landlady's writ against tenant's conne... 2014 AII HC

31 more

C-02 Connection transfer requires clearance of arrears clause 4.44 13 cases

A connection is transferred/mutated to a new holder under Clause 4.44 only after all arrears are cleared and formalities completed, by the Executive Engineer of the Division.

SCJ_1460_S · Shakambhari Peetham 2016 AII HC

SCJ_1785_S · Ganga Sharan 2018 AII HC

SCJ_1787_S · Gopal Krishna 2018 AII HC

SCJ_814 · Ram Das 2011 AII HC

SCJ_1218 · Indra Pratap Singh 2014 AII HC

SCJ_1231 · Janardan Dutt Shukla 2014 AII HC

SCJ_1159 · Bhauneesh Singh Gaur 2015 AII HC

SCJ_1753 · Istiyak 2018 AII HC

SCJ_2115 · Kunjesh Kumar Dubey 2019 AII HC

SCJ_452 · Naaz Fatima 2025 AII HC

3 more

C-03 Arrears follow premises not person fresh connection vs transfer 4 cases

Past dues are not a charge on premises and cannot be foisted on a mere transferee, but a distributor may stipulate clearance of arrears as a condition of a fresh connection or load enhancement to the same premises.

LEAD AUTHORITIES *Pashchimanchal Vidyut Vitran Nigam Ltd. v. DUS Steels & Alloys Pvt. Ltd.*; *Isha Marbles v. Bihar State Electricity Board*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 AII HC

SCJ_127 · Special Officer, Commerce, North Easte... 2012 SC

SCJ_229 · Soni Dwivedi 2016 AII HC

SCJ_248 · Kalawati Rana 2017 AII HC

C-04 Electricity arrears not a charge transferee liable only under statutory rules 3 cases

Electricity arrears are not a charge on the premises; a transferee is liable for a predecessor's dues only where statutory rules or statutory conditions of supply so authorise.

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board*; *Haryana State Electricity Board v. Hanuman Rice Mills*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. DvS Steels & Alloys (P) Ltd.*

SCJ_681_S · Trinmurti Buildwell Pvt Ltd 2010 AII HC

SCJ_655_S · Lakshmi Oil And Vanaspati Pvt. Ltd. 2010 AII HC

SCJ_268 · Vijay Lakshmi 2013 HC

C-05 Clause 4.3f co extensive liability not confined to private sale 2 cases

The Clause 4.3(f)(i) duty to find out and clear outstanding electricity dues to obtain a no-dues certificate is co-extensive on seller and purchaser and applies to auction/distress sales, not only private sales.

LEAD AUTHORITIES *Chandra Prakash Gupta v. State of U.P.*

SCJ_1317_S · Anoop Goyal 2015 AII HC

SCJ_271 · RKG Industries LLP 2023 AII HC

C-06 Arrears apportioned pro rata on subdivision 1 case

On a legal sub-division of a premises, outstanding electricity dues are divided pro-rata; a purchaser of a portion is liable only for that portion's share.

SCJ_007 · Anubhav Jaiswal 2014 All HC

C-07 Arrears bar is premises specific 1 case

The bar on a new connection for arrears attaches only to the specific premises in default, not to other portions of a building.

SCJ_006 · Anand Kumar 2023 All HC

C-08 Arrears follow premises not person ada allotment context 1 case

Extends the DVS Steels/Hanuman Rice Mills arrears-transferee-liability doctrine (SCJ-099) from private-sale/purchase contexts to a statutory development-authority (ADA) EWS-flat allotment, holding the two contexts are not meaningfully distinguishable; part of this corpus's broader arrears/occupant-liability cluster (SCJ-090, SCJ-098, SCJ-124).

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*

SCJ_125 · Pawan Jha @ Priya Jha 2011 All HC

C-09 Auction purchaser liable for predecessor dues as is where is 1 case

An auction purchaser buying on an "as is where is" basis is put to enquiry about, and takes the premises subject to, the erstwhile owner's outstanding electricity dues, which the licensee may recover from him.

LEAD AUTHORITIES *Telangana State Southern Power Distribution Co. Ltd. v. Srigdhaa Beverages*

SCJ_271 · RKG Industries LLP 2023 All HC

C-10 Clause 4.3 f vi landlord co extensive liability for tenant dues 1 case

A landlord's liability for a departed tenant's electricity dues is co-extensive under Clause 4.3(f)(vi), triggered once the connection was given with the landlord's consent (which a tenancy-agreement clause can itself evidence); this reinforces and extends this corpus's arrears/occupant-liability cluster (SCJ-090, SCJ-098) into the landlord-tenant context.

SCJ_124 · Beena Dubey 2017 All HC

C-11 Clause 4.3f director liability not retrospective and requires exhaustion of company assets 1 case

Establishes that Clause 4.3(f)'s director-liability regime (first-charge-on-company-assets, then directors only if insufficient) does not apply retrospectively to dues/citations predating the 2005 Supply Code, and requires the licensee to first exhaust recovery against company assets before reaching directors personally — a limiting counterpoint to this corpus's broader arrears/occupant-liability cluster...

LEAD AUTHORITIES *Adesh Kumar Jain v. U.P. State Electricity Board; M/s Meekin Transmission Ltd., Kanpur*

SCJ_129 · Piyush Kumar 2012 All HC

C-12 Clause 4.44 failure to mutate keeps recorded consumer liable 1 case

Where no Clause 4.44 application for transfer or mutation was ever made, the connection remains in the recorded name. That recorded consumer cannot, at the section 482 stage, shed s.135 liability by asserting a prior resignation or corporate takeover; those facts go to trial or discharge.

SCJ_665_S · Ashok Garg 2017 All HC

C-13 Director liability for company dues subordinate to company assets 1 case

Recovery from directors under Clause 4.3(f)(v) is sequenced after recovery against the company's assets and, pending challenge, abides the outcome of the lead writ petitions.

SCJ_245 · Mukesh Kumar and 3 Others 2017 All HC

C-14 Director not personally liable for company electricity dues 1 case

Director not personally liable for the company's electricity dues absent a personal guarantee; unavailable here as the citation ran against the company through its Director.

SCJ_1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 All HC

C-15 Fresh connection to auction purchaser free from encumbrances 1 case

The petitioner, having bought the premises in a public auction free from all encumbrances, contended it could not be denied a fresh connection for the erstwhile owner's dues; the Court granted an interim connection on a bank guarantee but never decided the Clause 4.3 question (dismissed for want of prosecution).

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-16 Interim connection on bank guarantee for disputed arrears 1 case

Interim relief took the form of a fresh connection granted on the petitioner furnishing a bank guarantee for the disputed arrears, expressly subject to the decision of the writ, with future dues to be paid.

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-17 Isha marbles distinguishable where auction clause covers dues 1 case

Isha Marbles is confined to auctions with no clause dealing with electricity dues; where the auction is "as is where is" and the terms put the purchaser to notice of dues, the purchaser is liable.

LEAD AUTHORITIES *Isha Marbles v. Bihar State Electricity Board*

SCJ_271 · RKG Industries LLP 2023 All HC

C-18 Lifting corporate veil to fix arrears liability 1 case

Where a common controlling person uses a web of firms/companies and acquisitions to escape recovery, the veil may be lifted to hold the applicant entity liable for the defaulter's arrears as a condition of supply.

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

C-19 No double recovery of arrears already realized from erstwhile owner 1 case

The Court observed that, the department having sought recovery from the erstwhile owner, it could receive the amount from the purchaser only if it had not already been realized from the erstwhile owner, and required a status report - guarding against double recovery.

SCJ_1978 · Kumar Audogic Vikas Pvt. Ltd. 2025 All HC

C-20 Purchaser jointly and severally liable for previous owners dues clause 4.3f 1 case

Under Clause 4.3(f) of the U.P. Electricity Supply Code, 2005 both seller and purchaser are jointly and severally liable for outstanding electricity dues up to the date of sale, with a duty to ascertain the dues / obtain a no-dues certificate; the dues are recoverable from the purchaser though the demand notice is in the erstwhile owner's name.

SCJ_1989 · Madan Mohan Saxena 2018 All HC

D. Insolvency interface — IBC, SICA & sick units 14 principles · 19 case-applications

Clean-slate, section 238 override, moratorium, and relief-undertaking protection.

D-01 Ibc s.238 overrides sector statutes 3 cases

Section 238 of the IBC, being a later special enactment with a non-obstante clause, overrides sectoral statutes with their own non-obstante/first-charge provisions (Electricity Act ss.173-174; also applied to the Customs Act and the Tea Act in other SC rulings) once liquidation/moratorium proceedings are triggered and the sectoral authority has participated in them.

LEAD AUTHORITIES *Innoventive Industries Ltd. v. ICICI Bank & Anr.*; *Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat (P) Ltd.*

SCJ_054 · Dharti Agro Industries Pvt. Ltd. 2025 **All HC**

SCJ_157 · South East U.P. Power Transmission Com... 2026 **All HC**

SCJ_160 · Reliance Projects and Property Managem... 2026 **All HC**

D-02 Pre cirp electricity dues recoverable only under section 53 waterfall 2 cases

The licensee is a secured operational creditor recovering pre-CIRP dues only through the Section 53 waterfall, not from the auction purchaser; on liquidation the right to recover from the premises/purchaser is extinguished.

LEAD AUTHORITIES *Eastern Power Distribution Co. of Andhra Pradesh Ltd. v. Maithan Alloys Ltd. (NCLAT)*; *West Bengal State Electricity Distribution Co. Ltd. v. Sri Vasavi Industries Ltd.*

SCJ_270 · HSA Traders 2023 **All HC**

SCJ_267 · S.K. Construction Co. 2023 **All HC**

D-03 Resolution plan extinguishes pre cirp electricity dues clean slate 2 cases

Electricity dues for the pre-CIRP period, not claimed during CIRP and not in the approved resolution plan, stand extinguished under s.31 IBC; the resolved entity takes over on a clean slate and statutory recovery cannot revive them.

LEAD AUTHORITIES *Ghanashyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*; *CoC of Essar Steel India Ltd. v. Satish Kumar Gupta*; *Ghanashyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*

SCJ_157 · South East U.P. Power Transmission Com... 2026 **All HC**

SCJ_160 · Reliance Projects and Property Managem... 2026 **All HC**

D-04 Section 238 ibc overrides supply code clause 4.3f 2 cases

Section 238 IBC overrides Clause 4.3(f) of the U.P. Supply Code where inconsistent; a fresh connection to an auction purchaser cannot be conditioned on clearing the corporate debtor's pre-CIRP dues.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Pvt. Ltd. (NCLAT)*

SCJ_270 · HSA Traders 2023 **All HC**

SCJ_267 · S.K. Construction Co. 2023 **All HC**

D-05 Corporate debtor liability distinct from director guarantor liability 1 case

Extinguishment of the corporate debtor's pre-CIRP liability is distinct from the co-extensive personal liability of erstwhile directors as guarantors under an independent contract of guarantee.

LEAD AUTHORITIES *Narendra Singh Panwar v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ_266 · Trimurti Concast Pvt. Ltd. 2023 **All HC**

D-06 Ibc liability crystallises at resolution plan effective date 1 case

The resolved debtor's liability crystallises from the plan's 'effective date' (actual transition of control), not the mere date of NCLT approval, especially where implementation was delayed by litigation; time excluded in litigation benefits the debtor, not the statutory creditors.

SCJ_160 · Reliance Projects and Property Managem... 2026 **All HC**

D-07 Ibc moratorium does not cover personal guarantor directors 1 case

The s.14 IBC moratorium and a resolution plan's discharge of the Corporate Debtor do not extinguish a Director's independent personal-guarantor liability for the company's electricity dues under Clause 4.3(f)(v)/6.15 of the Supply Code — a distinct sub-doctrine within this corpus's IBC/electricity-arrears cluster (cf. SCJ-054 Dharti Agro Industries, where IBC s.238 barred recovery from the licensee itself...

LEAD AUTHORITIES *State Bank of India v. V. Ramakrishnan*; *Lalit Kumar Jain v. Union of India*; *Laxmi Pat Surana v. Union of India*

SCJ_090 · Narendra Singh Panwar 2023 All HC

D-08 Ibc s.238 overrides electricity act recovery mechanism in liquidation 1 case

Once liquidation commences, IBC s.238 overrides the Electricity Act's ss.173/174 non-obstante recovery provisions and the Supply Code's Clause 4.3/6.15 mechanism; a licensee cannot independently attach/auction a corporate debtor's assets for electricity dues outside the IBC's collective process — directly confirms and elevates to Supreme Court authority the qualification to the arrears-run-with-the-premises...

LEAD AUTHORITIES *Sundaresh Bhatt, Liquidator of ABG Shipyard v. Central Board of Indirect Taxes and Customs*; *Duncans Industries Ltd. v. A/J Agrochem*

SCJ_100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 SC

D-09 Relief undertaking notification stays recovery 1 case

A notification under ss.3-4 of the 1966 Act suspends pre-notification liabilities and stays their enforcement, satisfying the stay condition of Clause 4.49 without any court order.

LEAD AUTHORITIES *Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur*

SCJ_246_S · L.M.L. Ltd. 2009 All HC

D-10 Resolution plan clean slate extinguishes pre cirp dues 1 case

On approval of a resolution plan under s.31 IBC, pre-CIRP claims not in the plan are extinguished; the corporate debtor under new management cannot be denied a fresh electricity connection for those dues.

LEAD AUTHORITIES *Ghanshyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.*

SCJ_266 · Trimurti Concast Pvt. Ltd. 2023 All HC

D-11 Section 32a protects corporate debtor property pre cirp 1 case

Section 32A(2) bars action against the corporate debtor's property for pre-CIRP liabilities once an approved plan changes control to an unconnected person.

SCJ_266 · Trimurti Concast Pvt. Ltd. 2023 All HC

D-12 Sica scheme binds participating licensee 1 case

A licensee heard during and consenting to a BIFR-sanctioned scheme (Sections 19(2) and 32(1) SICA) is bound by its demand-charge waiver and cannot invoke its Electricity Act tariff-recovery obligation to escape it.

LEAD AUTHORITIES *M/s Indian Maize and Chemical Ltd. v. State of Uttar Pradesh*

SCJ_1061 · U.P. Power Corporation Ltd. 2019 All HC

D-13 Sick relief undertaking cannot be billed at pre reduction load 1 case

A loss-making unit notified a 'Relief Undertaking' cannot be saddled with billing at the pre-reduction 8 MVA load after production has stopped; the declaration binds the licensee and continued 8 MVA billing was unjust and unfair.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

D-14 Sick unit protective treatment 1 case

A licensee must give protective, fair treatment to a Relief Undertaking / Sick Industrial Company (current dues only, arrears in instalments, no coercive disconnection) and cannot defeat an agreed load reduction by legalese; the Supply Code is applied to aid revival.

LEAD AUTHORITIES *Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur*

SCJ_038 · Kanpur Electricity Supply Co. Ltd. & A... 2010 SC

E. Premises, site, estimates, feeders & lines 18 principles · 30 case-applications

Independent feeders, tapping, change of site, estimates, and landowner objections.

E-01 Clause 4.5d landowner objection to supply line 9 cases

Landowners objected to poles and a tubewell supply line over their bhumidhari plot, invoking clause 4.5(d) of the U.P. Electricity Supply Code, 2005 (no line over third-party land without no-objection)..

SCJ_786 · Bhikari Lal Pal 2010 All HC

SCJ_1273 · Hridesh Kumar 2014 All HC

SCJ_582 · Shiv Shankar Pandey 2024 All HC

SCJ_1243 · Rizwan Ahmad 2014 All HC

SCJ_545 · Mewati And Anr. 2024 All HC

SCJ_120 · Shivismahraj 2024 All HC

SCJ_104 · Priy Shankar Pandey 2024 All HC

SCJ_169 · Abhimanyu Singh 2026 All HC

SCJ_282 · Kumar Ajay Singh 2026 All HC

E-02 Independent feeder original consumer consent 4 cases

Tapping of an independent feeder requires the consent of the original consumer(s) who bore its cost. Here the petitioners had objected and never consented, so the direction to connect respondent no.4 to their cold-storage independent feeder was in breach of Clause 3.4(d).

LEAD AUTHORITIES *M/s Kesarwani Sheetalaya & Others v. Purvanchal Vidyut Vitran Nigam Ltd. & Others; M/s Shiv Flour and Rice Mills v. State of U.P. & Others*

SCJ_708_S · Kesarwani Sheetalaya & Ors. 2009 All HC

SCJ_791 · Independent feeder — third consumer no... 2010 All HC

SCJ_244 · Raj Narayan Singh 2013 All HC

SCJ_067 · Shri Parasnath Alloys (Pvt.) Ltd. 2013 All HC

E-03 Para 4.29 service line cannot bypass clause 3.4 independent feeder conditions 2 cases

'Service line' (Clause 2.2(vv)) and 'independent feeder' are separate concepts; paras 4.29 and 3.4 are harmonised so that para 4.29 cannot be used to supply other consumers through an independent feeder while bypassing the Clause 3.4 conditions, which would otherwise be rendered redundant.

SCJ_708_S · Kesarwani Sheetalaya & Ors. 2009 All HC

SCJ_827_S · Kirti Sheet Grah Pvt. Ltd. 2011 All HC

E-04 Change of site of sanctioned load not permitted 4.8(d) 1 case

Extending a sanctioned connection to a different/enlarged site is a change of site barred by Clause 4.8(d)(i), not an internal change under Clause 4.45(c); a fresh connection must be sought.

SCJ_230 · KPB Metals Private Limited 2022 All HC

E-05 Clause 3.4a covers enhancement not just new connections 1 case

Clause 3.4(a)'s mandatory independent-feeder requirement for the specified heavy industries applies to load-enhancement applications as well as new connections — a significant clarification refining SCJ-101 (Pawan Kumar Agarwal) and SCJ-094 (Northern Coalfield) on the scope of Clause 3.4.

SCJ_123 · Sigma Castings Ltd. & Another 2013 All HC

E-06 Clause 3.4a independent feeder list is restrictive not illustrative 1 case

Clause 3.4(a)'s enumerated heavy-industry categories requiring mandatory independent-feeder supply are specific and restrictive, not illustrative; other consumers (even at higher loads) have only the Clause 3.4(b) option, not obligation, to seek an independent feeder — directly informs how 'Independent Feeder' provisions are to be read alongside the definitional line traced in SCJ-094 (Northern Coalfield).

SCJ_101 · Pawan Kumar Agarwal s/o M.P. Agarwal 2007 **All HC**

E-07 Clause 3.4d tapping conditions govern both 3.4a and 3.4b 1 case

A conjoint reading of Clause 3.4 shows that sub-clause (d) governs tapping of an independent feeder in both category (a) (Arc/Induction furnaces, rolling/re-rolling/mini steel plants) and category (b) (townships/complexes, domestic, non-domestic, institutional); its conditions are not confined to steel/furnace plants and must be satisfied before any fresh consumer is tapped in.

SCJ_708_S · Kesarwani Sheetalaya & Ors. 2009 **All HC**

E-08 Clause 3.4d tapping exception where independent feeder infeasible 1 case

Clause 3.4(d) allows tapping of an existing feeder for a similar-process consumer where an independent feeder cannot be constructed; a licensee cannot insist on 3.4(a) while ignoring the 3.4(d) exception.

SCJ_260 · Purvanchal Vidyut Vitran Nigam Ltd., B... 2008 **All HC**

E-09 Estimate departmental delay cannot shift feeder or force fresh estimate 1 case

A sanctioned, fully-paid estimate must be honoured; the department's delay cannot be used to move the consumer to a costlier feeder or demand a fresh estimate (Clause 4.6(a)/(g)).

SCJ_258 · Executive Engineer, Electricity Urban ... 2010 **All HC**

E-10 Independent feeder tapping not shared substation determines status 1 case

A feeder remains 'independent' notwithstanding other consumers being fed from other feeders off the same sub-station; it loses independence only if another consumer is tapped onto the very same feeder — the operative test for 'Independent Feeder' both under this pre-Code tariff interpretation and, by extension, informing how the term is later defined in the Electricity Supply Code 2002/2005.

SCJ_094 · Northern Coalfield Ltd. 2005 **All HC**

E-11 Landowner objection to line over land remedy before district magistrate 1 case

A landowner objecting to a high-tension line/towers over his private land is relegated to the Collector/District Magistrate under Rule 3(b) of the Works of Licensees Rules, 2006 (read with Clause 4.5(d) of the U.P. Electricity Supply Code, 2005), not to a civil injunction or Article 227 relief.

SCJ_2193 · Sonpal Singh 2018 **All HC**

E-12 S.67 line over objecting owner land alternative or permission 1 case

Where a line must cross land whose owner objects, the licensee must find an alternative route or follow the s.67(2) permission procedure, causing least damage and paying compensation.

SCJ_264 · Chandu Khamaru 2011 **SC**

E-13 Sharing of consumer funded transformer 1 case

A subsequent consumer may be supplied from a transformer installed at another consumer's expense. The High Court accepted that para 4.29 of the U.P. Electricity Supply Code, 2005 permits such a connection, declined to interfere, and disposed of the writ without prejudice to other remedies..

SCJ_520 · Ram Magan Chauhan @ Ram Magan 2025 All HC

E-14 Sharing of existing consumer s service line with other consumers 1 case

Clause 4.29 of the U.P. Electricity Supply Code, 2005 permits a distribution licensee to give supply to other consumers from a connection already given to an existing consumer. The High Court found no defect in that conduct, but directed the licensee to ensure that supply to the original consumer is not affected..

SCJ_979_S · Dujiya 2013 All HC

E-15 Single point connection two connections in same premises 1 case

On a licensee's writ against a Permanent Lok Adalat award, the High Court issued notice and stayed the award pending listing, without deciding the Clause 4.15(C) single-point contention, but directed immediate restoration of the wife's electricity connection.

SCJ_1187 · Executive Engineer, Electricity Distri... 2014 All HC

E-16 Single point to multipoint requires 51 percent consumers 1 case

Conversion of an existing single-point supply in a multi-storey building to individual connections requires an application by 51% of the consumers drawing from that single point (Electricity Supply Code (Thirteenth Amendment), 2018). A shop-buyer with 10% support, whose sale deed accepted the vendor's one-point connection and a prepaid meter, has no cause of action for a direct connection. Writ dismissed.

SCJ_355_S · Mohammad Afsar Khan And Another 2025 All HC

E-17 Tapping allowed if feasible and original supply unaffected 1 case

Even absent a right to object, tapping is permissible only where technically feasible and the licensee records that the original consumer's supply is not affected.

SCJ_244 · Raj Narayan Singh 2013 All HC

E-18 Transformer capacity extension at 80 load 1 case

Clause 4.2 of the U.P. Electricity Supply Code, 2005 obliges the licensee to extend transformer capacity only if load reaches 80% of installed capacity..

SCJ_1465 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 All HC

F. Security, load, tariff & regulatory economics 24 principles · 159 case-applications

Additional security, load change, tariff orders, rebates, and Commission-determined charges.

F-01 Additional security 104 cases

Unpaid additional security cannot be classified as electricity arrears for the purpose of denying load-factor rebate, even if a UPERC Director (Licensing) letter so treats it.

LEAD AUTHORITIES *M/s K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ_697_S · R.A. Castings Pvt. Limited 2018 **All HC**

SCJ_626 · Challenge to 2002 Code cl. 4.55 securi... 2012 **All HC**

SCJ_627 · Awadh Steels & Alloys (P) Ltd. 2012 **All HC**

SCJ_628 · R.A. Castings (Pvt.) Ltd. 2012 **All HC**

SCJ_1004 · Additional security under Para 4.20 — ... 2017 **All HC**

SCJ_1016 · Suchi Paper Mills Ltd. 2017 **All HC**

SCJ_1040 · Bhole Baba Ice And Cold Storage Pvt. L... 2017 **All HC**

SCJ_1164 · Additional security under clause 4.20 ... 2017 **All HC**

SCJ_1176 · Silverton Pulp & Papers Pvt. Ltd. 2017 **All HC**

SCJ_1185 · Omar Cold Storage Pvt. Ltd. 2017 **All HC**

94 more

F-02 Licensee cannot alter commission determined tariff 10 cases

Minimum monthly/fixed charges form part of the Commission-notified Tariff Order under Section 24 of the Reforms Act, 1999 and paragraphs 3.8/3.9 of the Code. The licensee cannot waive them on a consumer request, and the Ombudsman cannot direct the licensee to ignore the Tariff Order. Co-lead with SCJ-700 (Writ-C No. 1003603 of 2008, same date and bench); one of the 21.03.2023 Coordinate Bench trio later followed...

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Ombudsmen and 2 others (Writ-C No. 1003603 of 2008, 21.03.2023)*

SCJ_645_S · Chandra Bhan Singh 2013 **All HC**

SCJ_700_S · U.P. Power Corp. Ltd. Through Executiv... 2023 **All HC**

SCJ_701_S · U.P. Power Corp. Ltd. Through Executiv... 2023 **All HC**

SCJ_702_S · U.P. Power Corp. Ltd. Through Executiv... 2023 **All HC**

SCJ_490_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_491_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_492_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_493_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_494_S · U.P. Power Corp. Ltd. Through Executiv... 2025 **All HC**

SCJ_155 · Saini Alloys Pvt. Ltd. 2006 **All HC**

F-03 Security deposit is advance payment not debt 10 cases

A security/additional-security deposit is an advance payment (depositor-depositee), not a debt owed to the licensee, and is not recoverable as arrears of land revenue.

LEAD AUTHORITIES *Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.; Ferro Alloys Corporation Ltd. v. A.P. State Electricity Board; Tehri Girders Limited v. Paschimanchal Vidyut Vitran Nigam Limited*

SCJ_1979_S · K.L. Concast Pvt. Ltd. 2011 **All HC**

SCJ_697_S · R.A. Castings Pvt. Limited 2018 **All HC**

SCJ_627 · Awadh Steels & Alloys (P) Ltd. 2012 **All HC**

SCJ_628 · R.A. Castings (Pvt.) Ltd. 2012 **All HC**

SCJ_648 · G.M.K. Steels Pvt. Ltd. 2016 **All HC**

SCJ_649 · L. Kant Paper Mills Ltd. 2016 **All HC**

SCJ_369 · Shri Ganga Paper Mills Pvt. Ltd. 2025 **All HC**

SCJ_842 · Suresh Furnace Pvt. Ltd. 2023 **All HC**

SCJ_852 · Vardhman Casting Pvt. Ltd. 2026 **All HC**

SCJ_252 · Tehri Girders Limited and another 2009 **All HC**

F-04 Additional security is not dues clause 4.49 not attracted 8 cases

Additional security is not a recoverable 'due'; Clause 4.49 (stay-of-recovery-of-dues) is not attracted and no bank guarantee for additional security can be demanded.

LEAD AUTHORITIES *Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.*; *Mirzapur Electric Supply Company Limited v. State of U.P.*

SCJ_1979_S · K.L. Concast Pvt. Ltd. 2011 AII HC

SCJ_976_S · Shree Gopala Iron India Pvt. Ltd. 2013 AII HC

SCJ_1341_S · Maruti Papers Ltd. 2015 AII HC

SCJ_1357_S · Silverton Pulp — cl. 4.49 cannot block... 2015 AII HC

SCJ_1335 · Kamakhya Steels 2017 AII HC

SCJ_252 · Tehri Girders Limited and another 2009 AII HC

SCJ_219 · Satguru Metalloys (Pvt.) Ltd. 2013 AII HC

SCJ_250 · Barnala Steel Industries Ltd. 2013 AII HC

F-05 S.47 4 interest on security at bank rate from enactment 6 cases

4.20(1)'s 3% credit is read down; interest on security is payable at the s.47(4) bank rate or more from 10 June 2003, for the period the sub-clause operated.

SCJ_676_S · Madhu Roller Flour Mills Pvt Ltd 2010 AII HC

SCJ_639_S · Prem Steels (Pvt.) Limited 2022 AII HC

SCJ_648 · G.M.K. Steels Pvt. Ltd. 2016 AII HC

SCJ_1263 · Matrumal Dhannalal Oil Mill 2014 AII HC

SCJ_1375 · Matrumal Dhannalal Oil Mill 2015 AII HC

SCJ_659 · Mohan Elctro Casting Pvt. Ltd. 2016 AII HC

F-06 Commission alone determines tariff overrides contract 2 cases

Once the regulatory commission is constituted, the statutory power to determine tariff/power-purchase price displaces the price mechanism agreed between the parties, even where the agreement is otherwise statutorily protected.

SCJ_645_S · Chandra Bhan Singh 2013 AII HC

SCJ_156 · Noida Power Company Ltd. 2005 AII HC

F-07 Tariff no retrospective effect 2 cases

A tariff condition (here kVAh billing) operates only from the effective date fixed by the tariff order; the licensee cannot apply it retrospectively to re-bill a consumer for earlier periods.

LEAD AUTHORITIES *Binani Zinc Ltd. v. Kerala State Electricity Board & Ors.*

SCJ_1983_S · Executive Engineer, Electricity Rural ... 2017 AII HC

SCJ_066 · Shokumbhari Pulp & Paper Mills Ltd. 2014 AII HC

F-08 Additional security default does not bar load factor rebate 1 case

A tariff-order load factor rebate barred only to consumers 'with arrears' cannot be denied for non-furnishing of additional security, since that default is not arrears; such denial is illegal.

SCJ_1979_S · K.L. Concast Pvt. Ltd. 2011 AII HC

F-09 Charitable institution free or subsidised service tariff lmv 4a 1 case

A charitable institution providing service free or at Government-rate charges is billed under LMV-4(A), not LMV-4(B).

SCJ_261 · Kanpur Electricity Supply Co. Ltd. and... 2011 AII HC

F-10 Clause 4.49 intra vires protective not recovery 1 case

Clause 4.49 is a valid protective provision (bank guarantee for a stayed amount as a condition of load enhancement), not a recovery mechanism, and is intra vires the Act.

SCJ_255 · Suvidha Engineers India Ltd. 2009 AII HC

F-11 Legal profession not commercial activity for tariff 1 case

Establishes that the legal profession, being a professional (not commercial) activity, cannot be billed under the non-domestic/commercial LMV-2 tariff merely because the current rate schedule lacks an express 'lawyers' chambers' category and a residuary clause would otherwise sweep it into LMV-2 — an important tariff-classification precedent extending Clause 3.3(e)'s residential-professional-use exemption to...

LEAD AUTHORITIES *Dr. D.M. Surti v. State of Gujarat; M.P. Electricity Board and Others v. Shiv Narayan and Another; V. Sasidharan v. M/s Peter and Karunakar*

SCJ_133 · Tehsil Bar Association, Sadar Tehsil P... 2023 All HC

F-12 Licensee circular cannot override commission tariff order 1 case

A licensee's own circular/notification cannot alter or vary a tariff duly approved by the Regulatory Commission; in case of inconsistency, the Commission-approved tariff order prevails.

LEAD AUTHORITIES *LMMLtd., Kanpur v. State of U.P.*

SCJ_094 · Northern Coalfield Ltd. 2005 All HC

F-13 Load reduction stands approved on licensee decision only ministerial steps left 1 case

Once the licensee's competent authority decides to reduce load on a complete application without pointing out any shortcoming, the reduction stands approved and only ministerial steps remain; the licensee cannot resile by later insisting on requirements not raised at the time.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

F-14 Lps change in law ppa 1 case

Not a Supply Code case in substance — a wholesale bulk-power-procurement dispute between a distribution licensee and generating companies over Late Payment Surcharge (LPS) under Power Purchase Agreements

SCJ_077 · Maharashtra State Electricity Distribu... 2021 SC

F-15 Lps not leviable absent consumer default 1 case

Late payment surcharge under Clause 6.7 / the rate schedule cannot be charged where the payer was not a defaulter — here an Official Liquidator with no funds until realisation of assets, supplying under court order; actual bills admitted, surcharge disallowed.

SCJ_152 · U.P. State Cement Corporation Ltd. (In... 2007 All HC

F-16 MCG waiver barred if dues pending 1 case

Paragraph 11 of the Commercial and Revenue Manual (the petitioner linked the exception to Clause 9.1 of the 2005 Code) withholds MCG for a disconnection period only if no dues are pending. An Ombudsman finding of pending bill dues leaves no occasion to waive MCG; the waiver is quashed. Distinct from SCJ-030 / SCJ-059 (fault for the interruption) and SCJ-490–494 (tariff-order non-waivability of minimum monthly...

SCJ_699_S · Dakshinanchal Vidyut Vitran Nigam Ltd.... 2022 All HC

F-17 No uperc approval needed for licensee load reduction 1 case

The Code does not require the U.P. Electricity Regulatory Commission's approval of a licensee's decision to reduce load; the reference to the Commission was a redundant exercise that could not defeat rights accrued on the licensee's own decision.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

F-18 Pricing governed by tariff order not supply code 1 case

The manner of charging the price of electricity supply is governed by the Tariff Order and Tariff Schedule under Section 45 of the Electricity Act, 2003; the Supply Code, 2005 prescribes no method of charging the price.

SCJ_1983_S · Executive Engineer, Electricity Rural ... 2017 All HC

F-19 Protective load additional charges clause 4.27 1 case

The licensee's power to levy protective-load additional charges under Clause 4.27 of the U.P. Electricity Supply Code, 2005 is in issue where the consumer opted for 24-hour supply; the charge is contested as impermissible absent scheduled rostering by the competent authority.

SCJ_1988 · Ranjeeta Cold Storage & Ice Plant 2016 All HC

F-20 Protective load charges clause 4.27 challenge 1 case

A demand of 'protective load charges' under Clause 4.27 of the U.P. Electricity Supply Code, 2005 was challenged on the ground that the consumer made no application or agreement for protective load; the Department asserted a written application was made. The dispute (a question of fact) was not decided.

SCJ_2190 · Ganga Dairy 2025 All HC

F-21 S.62 6 interest generation tariff 1 case

Not a Supply Code case in substance — a wholesale generation-tariff dispute between NTPC (a generating company) and purchasing State Electricity Boards over interest on the differential between an interim/continued tariff (charged pending final tariff determination under Section 62 of the Electricity Act

SCJ_073 · NTPC Ltd. 2011 SC

F-22 S.62 6 interest only for overcharging not delayed rebate 1 case

Section 62(6) interest is confined to genuine overcharging above the determined tariff; a rebate under the tariff order is a bill-level concession, and its delayed crediting does not attract s.62(6) interest.

SCJ_072 · Kamla Cold Storage And Ice Factory 2020 All HC

F-23 Tariff interpretation is not a jurisdictional question 1 case

A challenge framed as 'beyond the scope of Section 45' to a demand-charge / 75% billable-demand levy for a disconnection period is really tariff interpretation, not want of jurisdiction; it does not attract the 'wholly without jurisdiction' exception to the alternative-remedy rule. Applied with Whirlpool and Gujarat Ambuja.

LEAD AUTHORITIES *Whirlpool Corporation v. Registrar of Trade Marks, Mumbai*; *State of H.P. v. Gujarat Ambuja Cement Ltd.*

SCJ_1562_S · Shree Gopala Iron (India) Ltd. & Anr. 2012 All HC

F-24 Withdrawn load factor rebate is a recoverable due 1 case

A load-factor rebate given in the bill and later withdrawn becomes a 'due', so a bank-guarantee demand for that amount is permissible (unlike additional security).

SCJ_252 · Tehri Girders Limited and another 2009 All HC

G. Metering 17 principles · 46 case-applications

Clause 5.6 testing, defective and slow meters, check meters, and meter-reading disputes.

G-01 Meter dispute must exhaust clause 5.6 before writ 13 cases

Where a billing dispute turns on the accuracy of a meter/transformer reading, the consumer must first invoke the Clause 5.6 testing procedure (and thereafter the Electrical Inspector) rather than approach the writ court directly; the writ challenge is premature until that statutory route is exhausted.

SCJ_918_S · Deepak Mishra 2012 **All HC**

SCJ_430_S · Akriti Food Industry LLP 2025 **All HC**

SCJ_983 · Abdul Hameed Alias Abdul Haneef 2013 **All HC**

SCJ_1722 · Vikas Cool Industries 2017 **All HC**

SCJ_2017 · Anees Rayin And Company 2019 **All HC**

SCJ_861 · Chaudhary Nursing Home Pvt. Ltd. 2020 **All HC**

SCJ_1980 · Chandrawati Singh 2015 **All HC**

SCJ_1361 · Shakuntla Devi 2015 **All HC**

SCJ_1362 · Jaydev Singh 2015 **All HC**

SCJ_1557 · Umesh Singh 2016 **All HC** 3 more

G-02 Prepayment meter exemption conditional on availability 10 cases

The s.47(5)/Clause 4.20(I) security exemption for consumers willing to take supply through a prepayment meter operates only once such meters are actually available for that consumer category; unavailability (as for HT consumers) leaves the licensee's ordinary power to demand security under s.47(1)-(4) intact. Followed and agreed with the Telangana/AP High Court's parallel ruling in Sarwottam Ispat.

LEAD AUTHORITIES *Sarwottam Ispat Ltd. v. Southern Power Distribution Company of Telangana Ltd. & Ors.*

SCJ_646 · Kanika Steels Pvt. Ltd. 2016 **All HC**

SCJ_647 · Supreme Electrocast Pvt. Ltd. 2016 **All HC**

SCJ_649 · L. Kant Paper Mills Ltd. 2016 **All HC**

SCJ_650 · Shree Jagdish Cement Pvt. Ltd. 2016 **All HC**

SCJ_1228 · Prime Pulp & Paper Pvt. Ltd. 2017 **All HC**

SCJ_660 · Suyash Kraft And Papers Ltd. 2018 **All HC**

SCJ_952 · Ramchander Straw Products Ltd. 2012 **All HC**

SCJ_930 · Moolchand Steels Pvt. Ltd. 2025 **All HC**

SCJ_948 · Shri Jai Balaji Rolling Mills Limited 2025 **All HC**

SCJ_053 · Dev Prayag Paper Mill (Pvt.) & Ors. 2017 **All HC**

G-03 Meter manufacturer testing not independent 4 cases

Testing of a disputed meter by its own manufacturer (e.g. Secure Meters Ltd.) does not satisfy the Code's requirement of testing at an 'independent laboratory'; such testing is inherently biased and cannot be relied upon to sustain an unauthorised-use assessment. Followed by later cases (see also SCJ-051 line applying the same technical background).

LEAD AUTHORITIES *M/s JMD Alloys Limited v. Bihar State Electricity Board; M/s Modern Rice Mill v. MVVNL & Anr.; Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd.*

SCJ_980 · Shailesh Mittal 2013 **All HC**

SCJ_059 · Modern Rice Mill 2011 **All HC**

SCJ_071 · Venus Stone Crushing Co. & Anr. 2012 **All HC**

SCJ_161 · Rituraj 2017 **All HC**

G-04 Meter reading dispute clause 6.5 4 cases

A dispute that billed units (24,400) did not match the licensee's later MRI/office reading (2,45,280) is a meter-reading/billing grievance first raised with the licensee under paragraph 6.5, then CGRF/Ombudsman. Same cluster as SCJ-046, SCJ-551.

SCJ_704_S · The Purvanchal Vidyut Vitran Nigam Ltd... 2010 **All HC**

SCJ_669 · Mohan Electrocasting Pvt. Ltd. And Ano... 2023 **All HC**

SCJ_551 · Hotel Pride Inn 2024 **All HC**

SCJ_046 · Lala Ram Batham 2012 **All HC**

G-05 Connection must be released with a meter 2 cases

Releasing an electricity connection without installing a meter is illegal under the Electricity Act, 2003; the proviso to Section 55(1) even allows a consumer to install a purchased meter, so meter-unavailability is no excuse for a meterless release.

SCJ_1265_S · Kanpur Electricity Supply Company Ltd.... 2011 **All HC**

SCJ_259 · Devanshu Bose 2026 **All HC**

G-06 Meter testing venue option must be offered before sealing 2 cases

Before a sealed meter is tested, the licensee must give the consumer a clear (bold-capitals) notice of the right to choose the testing venue — licensee's lab, an approved independent agency, or the electrical inspector; omitting it makes the testing illegal.

SCJ_162 · Amrawati Devi 2009 All HC

SCJ_161 · Rituraj 2017 All HC

G-07 Billing must follow actual meter reading 1 case

Metered consumption must be billed on actual meter readings; a licensee's supplementary/amended bill raised later on a presumed/average basis (e.g. suspected faulty meter) is not lawful absent due process — resonates with the Clause 5.6/5.9 defective-meter procedure line already established in this corpus (e.g. SCJ-058, SCJ-059, SCJ-071).

SCJ_076 · Maharashtra Electricity Regulatory Com... 2007 SC

G-08 Check meter procedure on consumer request 1 case

The Clause 5.6 check-meter/testing procedure for a disputed meter is triggered only by the consumer's request; a consumer who has knowledge of a slow-meter finding and does not dispute it or seek testing cannot later invoke Clause 5.6 non-compliance to challenge the consequential bill.

SCJ_058 · Krown Bakers India Pvt. Ltd. 2014 All HC

G-09 Clause 4.15 ht eht independent entry to meter 1 case

Clause 4.15(b) obliges HT/EHT consumers to provide independent entry to the meter or metering cubicle; Clause 4.15(a) lets the licensee fix the point of supply so meters remain unobstructed. An EE order to build a cubicle near the main gate with independent access is intra vires; a plea that access already exists goes to the EE, not the writ court.

SCJ_670 · Atul Industrial Corporation And Another 2023 All HC

G-10 Clause 5.6 meter testing required before missing meter assessment 1 case

Reinforces this corpus's Clause 5.6 line (Smt. Amrawati Devi, Modern Rice Mill) requiring meter testing/verification before an assessment premised on a missing or defective meter is finalised.

LEAD AUTHORITIES *Smt. Amrawati Devi v. PuVVNL; M/s Modern Rice Mill v. MVVNL*

SCJ_126 · Vimla Tiwari 2012 All HC

G-11 Impossibility exception outside meter billing 1 case

Where the consumer's own meter cannot yield a reading due to physical impossibility (fire, theft), a reliably maintained outside/check meter may exceptionally found billing, applying the impossibility maxims.

LEAD AUTHORITIES *Inter College Kusmaul, Gorakhpur & Anr. v. State of U.P. & Ors.*

SCJ_060 · Mohit Paper Mills Ltd. & Anr. 2011 All HC

G-12 Meter holder liable notwithstanding tenant in occupation 1 case

The registered consumer in whose name the meter stands is liable for the charges; Clause 2.2(oo)'s 'Occupier' definition does not shift liability to a tenant in occupation. Cf. the definitional Clause 2.2 applied in SCJ-072.

SCJ_1271 · Dinesh Kumar Gupta 2025 All HC

G-13 Meter removed without objection loses right to dispute 1 case

A consumer who allows the meter to be removed/replaced without raising a s.26(6) dispute loses the material evidence and cannot later dispute past bills on meter-correctness grounds.

SCJ_262 · I.G. Shoes Pvt. Ltd. 2016 All HC

G-14 Meter testing after alleged tampering 1 case

On a consent disposal, where the distribution licensee did not dispute that a meter found tampered on inspection should be tested as held in Smt..

SCJ_805 · Gaurav Gupta 2010 All HC

G-15 Metering before bush bar housing society separate connection 1 case

A writ challenging a UPPCL letter on metering before the bush bar was dismissed. The Division Bench held the letter strictly conforms to clause 4.9 of the Electricity Supply Code, 2005

SCJ_1070_S · Rajeshwari Pandey 2013 All HC

G-16 No billing on basis of check meter 1 case

A bill/demand cannot be raised on the basis of a check meter, there being no such provision in the Code or the Act.

SCJ_202 · Gautam Motors Pvt. Ltd. 2016 All HC

G-17 Slow meter difference only three months clause 5.6cii 1 case

Under Clause 5.6(c)(ii) the difference for a slow/defective meter is chargeable only for the previous three months, and testing must be in the consumer's presence with an opportunity to object; a multi-year slow-meter demand cannot stand.

SCJ_203 · Madhuvan Properties (P) Ltd. 2016 All HC

H. Billing, payment, instalments & limitation 19 principles · 855 case-applications

Clause 6.5 objections, 6.14 instalments, first-due, and the two-year bar (s.56 / Cl. 6.15).

H-01 Billing objection to executive engineer under 6.5 670 cases

An Executive Engineer's Clause 6.5 order on a billing objection, being devoid of reasons and showing no application of mind, was quashed and remitted for a fresh reasoned decision after hearing, within two months.

SCJ_704_S · The Purvanchal Vidyut Vitran Nigam Ltd... 2010 All HC

SCJ_1356_S · Surya Narayan 2015 All HC

SCJ_1742_S · Fixed charges remain payable during te... 2018 All HC

SCJ_2012_S · Santosh Kumari 2019 All HC

SCJ_451_S · Shree Badri Kedar Papers Private Limit... 2025 All HC

SCJ_385_S · Swabhimani Breweries Private Limited 2025 All HC

SCJ_735 · Emmanuel Winton Gideon 2009 All HC

SCJ_744 · Consumption bill challenge dismissed f... 2009 All HC

SCJ_745 · Nazrul Islam 2009 All HC

SCJ_747 · Pradeep Kumar Jaiswal 2009 All HC

660 more

H-02 Installment payment clause 6.14 135 cases

A recovery citation issued in the name of a deceased recorded consumer cannot be sustained. The heir must apply for mutation under Clause 4.44 of the U.P. Electricity Supply Code, 2005, and may thereafter seek installment payment of dues under Clause 6.14; the licensee is to pass an appropriate order thereon.

SCJ_1787_S · Gopal Krishna 2018 AII HC

SCJ_913 · Rajveer Sharma 2012 AII HC

SCJ_922 · Nawab Ali 2012 AII HC

SCJ_923 · Panna Lal 2012 AII HC

SCJ_924 · Installment facility under clause 6.14... 2012 AII HC

SCJ_925 · Garib Das 2012 AII HC

SCJ_986 · Maa Kaila Devi Sheet Grah Pvt. Ltd. 2013 AII HC

SCJ_987 · Anurag Pisai Kendra 2013 AII HC

SCJ_988 · Ram Lakhan Singh 2013 AII HC

SCJ_981 · Ganga Prasad 2013 AII HC

[125 more](#)

H-03 Instalment facility clause 6.14 for financial distress 19 cases

Pleaded poor financial condition and readiness to pay, with the department's lack of objection, engaged clause 6.14's instalment facility for customers in financial distress; the Court itself scheduled three instalments rather than remitting the application.

SCJ_1720_S · Parmarth Steel & Alloys Pvt. Ltd. 2017 AII HC

SCJ_922 · Nawab Ali 2012 AII HC

SCJ_923 · Panna Lal 2012 AII HC

SCJ_924 · Installment facility under clause 6.14... 2012 AII HC

SCJ_1074 · Satyendra Singh 2013 AII HC

SCJ_1075 · Savari Ice Factory 2013 AII HC

SCJ_1225 · Dinesh Chandra 2014 AII HC

SCJ_1245 · Natthoram 2014 AII HC

SCJ_1253 · Gufran 2014 AII HC

SCJ_1476 · Harikesh Yadav 2016 AII HC

[9 more](#)

H-04 Clause 6.15 two year bar mandatory licensee duty to act 12 cases

The Clause 6.15/s.56(2) two-year recovery bar is not passive — it obliges the licensee to actively pursue notice-and-disconnection under Clause 4.36 within that window; prolonged inaction (here, ~12 years) forfeits recoverability, and Clause 4.38(c)'s permanent-disconnection-affidavit requirement cannot be read in isolation to override this.

SCJ_477_S · Executive Engineer, Dakshinanchal Vidy... 2025 AII HC

SCJ_1934 · Rakesh Khanna 2018 AII HC

SCJ_1935 · Kamlesh Gupta 2018 AII HC

SCJ_780 · Chandrapal 2010 AII HC

SCJ_1171 · Nitin Kumar Gupta 2014 AII HC

SCJ_1293 · Paschimanchal Vidyut Vitran Nigam Ltd. 2015 AII HC

SCJ_1332 · Mohammad Zaheer 2017 AII HC

SCJ_458 · Sewa Suraksha Sahkari Awas Samiti Ltd. 2025 AII HC

SCJ_218 · Paliwal Alloys (Pvt.) Ltd. 2009 AII HC

SCJ_113 · Satya Narayan 2013 AII HC

[2 more](#)

H-05 Clause 6.5 objection must be in proper form 3 cases

A billing objection triggers the licensee's duty to decide it only if it conforms to Clause 6.5 (particulars of amount deposited and the specific objection to the bill); a non-conforming representation need not be decided.

SCJ_1420_S · Sm. Neelima Tiwari 2016 AII HC

SCJ_544 · Vijay Shukla 2024 AII HC

SCJ_187 · Mukesh Singh Chaturvedi 2014 AII HC

H-06 Billing dispute question of fact executive engineer clause 6.5 2 cases

Disputed questions of fact - whether a connection was permanently disconnected and whether it was of a particular nature or load - are for the Executive Engineer to examine as a billing dispute under Clause 6.5; the writ court relegates rather than decides.

SCJ_2192 · Mahesh Chandra 2018 AII HC

SCJ_2191 · Siya Ram 2018 AII HC

H-07 Clause 6.5b quantification dispute 2 cases

A dispute solely over quantification of a demand is relegated to the Clause 6.5B authority for a reasoned determination, rather than being adjudicated in writ jurisdiction.

SCJ_534 · Petitioner 2025 **All HC**

SCJ_075 · Madarsa Dargah Aaliya Islamiya Shareef... 2023 **All HC**

H-08 Billing cause of action 1 case

Writ against an alleged incorrect electricity bill dismissed. Petitioner had earlier been redirected to complain under the U.P. Electricity Supply Code, 2005; the resulting 24 April 2025 letter confirmed no dues only for November 2023–January 2024 cycles, and the 10 April 2025 bill had already been paid..

SCJ_393 · Ashwani Kumar 2025 **All HC**

H-09 Billing cycle 1 case

On a complaint that a distribution licensee had issued bills contrary to the billing cycle in the U.P..

SCJ_990 · Raghu Prime Metal Pvt. Ltd. 2013 **All HC**

H-10 Clause 6 15b read with section 56 not independent limitation 1 case

Para 6.15(b) of the U.P. Electricity Supply Code, 2005 was held to take colour from Section 56(1) and not to impose a stand-alone two-year limitation, even in a theft case. Same Clause 6.15 cluster as SCJ-113, SCJ-477.

SCJ_1264 · Joginder Singh 2023 **All HC**

H-11 Due date for bill payment 1 case

On a writ challenging electricity bills for want of the 15-day payment window under clauses 6.1(g) and 4.36(a) of the U.P..

SCJ_985 · Supreme Ceramics Ltd. 2013 **All HC**

H-12 Fresh bill distinguished from supplementary bill for s.56(2) 1 case

The relaxation for a supplementary bill (limitation running from discovery of a bona fide mistake) does not extend to a fresh bill for over two years; Clause 6.15 was not addressed in the Ajmer Vidyut line.

LEAD AUTHORITIES *Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan*

SCJ_263 · Zaz Leather Complex Pvt. Ltd. 2023 **All HC**

H-13 Licensee performs installation consumer cannot self supply 1 case

Installation of new-connection infrastructure (within 500 m) is done by the licensee, whose estimate under Clause 4.6 includes laying-line/mains/material charges; the consumer pays but cannot insist on supplying/installing the equipment himself.

SCJ_201 · Madhu Rani Agrawal 2014 **All HC**

H-14 Limitation plea preserved before executive engineer 1 case

On relegating a recovery dispute to the Executive Engineer, the consumer is left free to take all pleas, including the plea of limitation, before that authority, and the recovery proceedings are made subject to the outcome of that order.

SCJ_2192 · Mahesh Chandra 2018 **All HC**

H-15 Own installment offer forecloses quashing of recovery 1 case

The petitioner's own letter dated 5.12.2012 offering to pay the corrected demand in 60 installments left no occasion to quash the recovery; the writ was disposed of relegating the installment modalities to the Executive Engineer.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 AII HC

H-16 S.56(2) bar does not apply to continuing regular bills 1 case

The s.56(2) limitation protects against belated first demands, not the ongoing accrued bills of a continuing consumer still being supplied; a gross defaulter who paid nothing while consuming cannot invoke it.

SCJ_198 · Mamta Devi Srivastava 2014 AII HC

H-17 S.56 2 two year bar not retrospective to pre 2003 act liabilities 1 case

The s.56(2)/Clause 6.15 two-year recovery-limitation bar applies only prospectively to post-2003-Act liabilities; pre-2003-Act liabilities remain governed by s.24 of the 1910 Act (no limitation on demand/recovery power) via s.6 of the General Clauses Act — an important temporal-scope qualification on the recovery-limitation doctrine tracked elsewhere in this corpus (SCJ-111, SCJ-113, SCJ-119), distinguishing and...

LEAD AUTHORITIES *Kusumam Hotels (P) Ltd. v. Kerala State Electricity Board; M/s Isha Marbles v. Bihar State Electricity Board*

SCJ_122 · Shyam Ferrous Ltd. Gopal Nagar 2015 AII HC

H-18 Two year limitation recovery of arrears clause 6.15b 1 case

A recovery of electricity dues enforced after 11 years is challenged as time-barred under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 (no recovery after two years from when the amount becomes due unless continuously shown as recoverable as arrears); the Court found prima facie force but left the plea to the Executive Engineer.

LEAD AUTHORITIES *Satya Narayan v. U.P. Power Corporation Limited*

SCJ_2192 · Mahesh Chandra 2018 AII HC

H-19 Two year limitation recovery of electricity arrears 1 case

Recovery initiated in 2010 for a 1997 disconnection was quashed as barred by Clause 6.15(b) of the Supply Code, the Corporation having failed to establish that the dues were continuously shown as recoverable.

SCJ_1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 AII HC

I. Disconnection, reconnection & restoration 11 principles · 27 case-applications

Permanent disconnection, notice, and restoration on deposit or bank guarantee.

I-01 Clause 4.37 4.38 licensee empowered to permanently disconnect 10 cases

The licensee's power to permanently disconnect an existing connection is confined to the grounds in clause 4.38; a property-ownership dispute is not among them.

SCJ_1847_S · Mohd. Asif 2018 AII HC

SCJ_1257 · Ex. Eng. E.D.D. Dakshinanchal V.V. Nig... 2014 AII HC

SCJ_684 · Rani Agrawal 2019 AII HC

SCJ_1964 · Sarita Agnihotri 2019 AII HC

SCJ_595 · Satish Kumar @ Yatish Sharma 2024 AII HC

SCJ_357 · Sagufta Ishrar 2025 AII HC

SCJ_447 · Petitioner 2025 AII HC

SCJ_587 · Bipin Kumar Tripathi 2026 AII HC

SCJ_757 · Surbeer Singh 2009 AII HC

SCJ_281 · Parvati Devi 2026 AII HC

I-02 Disconnection not for landlord tenant dispute 4 cases

A tenant in possession is not to be deprived of electric supply on account of a landlord-tenant dispute; supply is restored (here by civil injunction pending the suit).

SCJ_1855_S · Sushmita Raghav 2018 AII HC

SCJ_018 · Dipali Dey (Baxi) 2009 SC

SCJ_016 · Devendra Sharma 2011 AII HC

SCJ_020 · Divya Sahani 2021 AII HC

I-03 Reconnection available after permanent disconnection clause 4.39 3 cases

Clause 4.39 of the Supply Code r/w the second proviso to Section 135(1A) EA2003 makes reconnection or fresh connection available even after a permanent disconnection ('PDC final') recorded on theft allegations; the authority is directed to consider the request. Interplay of the Supply Code and the theft provision of the Act. Same Clause 4.39 reconnection route as SCJ-1138 and SCJ-1143.

SCJ_1847_S · Mohd. Asif 2018 AII HC

SCJ_1563 · Satya Prakash Singhal 2014 AII HC

SCJ_609 · Manoj Kumar 2024 AII HC

I-04 Interim restoration on security pending fresh assessment 2 cases

Where a defective assessment is set aside for procedural non-compliance, the Court may order interim restoration of supply on the consumer furnishing security, subject to the outcome of a properly conducted fresh assessment.

SCJ_1063 · Vijay Krishna Agrawal & Anr. 2010 AII HC

SCJ_087 · Mrs Rajendra Kumar Sharma 2024 AII HC

I-05 Notice required before permanent disconnection 2 cases

Permanent disconnection of electricity supply — even where grounded in an allegation of unauthorized use — requires prior notice/show-cause opportunity under the Supply Code; disconnection without notice is arbitrary and unauthorized, warranting reinstatement without prejudice to a subsequent lawful show-cause process.

SCJ_1892 · Sub Divisional Officer Vidyut Nagariye 2018 AII HC

SCJ_108 · Raju 2024 AII HC

I-06 Direction to consider reconnection subject to clearing dues 1 case

Rather than ordering automatic reconnection, the court directs the competent authority to consider reconnection / fresh connection in accordance with law within a fixed period, conditioned on the consumer clearing all pending dues.

SCJ_1563 · Satya Prakash Singhal 2014 AII HC

I-07 Disconnection barred but recovery not 1 case

The two-year bar in s.56(2) restricts only the coercive remedy of disconnection; the licensee may still raise a supplementary demand and pursue other modes of recovery (including within limitation from discovery of a mistake).

SCJ_009 · Assistant Engineer (D1), Ajmer Vidyut ... 2020 SC

I-08 Interim restoration on part payment pending assessment challenge 1 case

Pending a challenge that a re-assessment was not computed per clause 8.2 of the Supply Code, the court restored the disconnected supply on part-payment (Rs.10 lakh) and deposit of current bills, with no coercive action - an interim arrangement leaving the merits open. Same interim-restoration-on-deposit posture as SCJ-1063 and SCJ-206.

SCJ_1564 · Nandu Engineering Works & Anr. 2012 AII HC

I-09 No free consumption disconnection for non payment 1 case

A consumer who consumed electricity must clear the bills; non-payment justifies disconnection, and the absence of a raised bill is no licence for free consumption - the remedy is to resolve the billing dispute under the Code.

SCJ_221 · Shanti Devi 2016 **All HC**

I-10 No writ restoration where connection alleged fraudulent and subjudice 1 case

The writ court will not restore an electricity connection under Article 226 where it is seriously alleged, in pending proceedings, to have been obtained by forged/fraudulent documents; the remedy is a fresh application or the outcome of the criminal case.

SCJ_194 · Dhyanendra Singh 2016 **All HC**

I-11 Restoration of connection on furnishing bank guarantee 1 case

The time to furnish the bank guarantee was extended and it was directed that any connection disconnected only for its non-furnishing be forthwith restored on furnishing the guarantee and completing formalities.

SCJ_1977 · Marsood Khan @ Maqsood Khan 2016 **All HC**

J. Unauthorised use (s.126) & assessment 43 principles · 309 case-applications

What is UUE, the 1.5× rate, notice and hearing, provisional and final assessment.

J-01 Clause 6.8 hearing procedure mandatory before uue conclusion 99 cases

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory. A provisional assessment made without notice and without fixing a date of hearing cannot support a demand notice or recovery certificate. Both were quashed, leaving the licensee free to assess afresh after following the prescribed procedure.

LEAD AUTHORITIES *Ashok Kumar & Ors. v. State of U.P. & Ors.*; *Ashok Kumar v. State of U.P.*

SCJ_722_S · Vijaybir Singh 2009 **All HC**

SCJ_664_S · Mahavir Rolling Mills 2009 **All HC**

SCJ_1207_S · Siddharth Rai 2014 **All HC**

SCJ_1226_S · Unserved theft provisional assessment:... 2014 **All HC**

SCJ_1227_S · Theft citation quashed for want of 6.8... 2014 **All HC**

SCJ_1982_S · Ramanuj Tripathi 2014 **All HC**

SCJ_1254_S · Veerendra Singh 2014 **All HC**

SCJ_1353_S · Akbar 2015 **All HC**

SCJ_1354_S · Bahabuddin @ Raju 2015 **All HC**

SCJ_1411_S · Manoj Singh 2016 **All HC**

89 more

J-02 Opportunity before final assessment 95 cases

In the consumer/electricity-theft context, the statutory 'reasonable opportunity of hearing' (s.126(3)) includes a personal hearing before a final assessment; taking note of written objections alone is insufficient.

SCJ_706_S · Mayur Sheetgrah Pvt. Ltd. 2014 **All HC**

SCJ_661_S · Uco Bank 2017 **All HC**

SCJ_1328_S · Beni Madhav 2017 **All HC**

SCJ_1837_S · Mohd. Usman 2018 **All HC**

SCJ_2021_S · P.L. Cold Storage 2019 **All HC**

SCJ_658_S · Akhalak Ahmad 2020 **All HC**

SCJ_619_S · Ram Prasad Gupta 2024 **All HC**

SCJ_351_S · S. Milan Agro Industries & 2 Others 2025 **All HC**

SCJ_719 · Nirmal Kumar 2009 **All HC**

SCJ_677 · Amna Khatoon 2010 **All HC**

85 more

J-03 S.126 procedural strictness notice and hearing 44 cases

A final assessment under s.126 must engage with the consumer's objections and record findings after a fixed hearing date, per Clauses 6.8/8.1; failure to do so vitiates the assessment and any recovery founded on it — reinforcing the procedural-strictness line already tracked in this corpus for theft/final-assessment orders (e.g. SCJ-069, SCJ-071).

LEAD AUTHORITIES *Whirlpool Corporation v. Registrar of Trade Marks*; *Ashok Kumar v. State of U.P.*

SCJ_908_S · Triloki Mishra 2012 All HC

SCJ_909_S · Shiv Baboo Yadav @ Ashok Kumar 2012 All HC

SCJ_706_S · Mayur Sheetgrah Pvt. Ltd. 2014 All HC

SCJ_1439_S · Jagat Singh 2016 All HC

SCJ_1590_S · Uma Shankar Yadav 2017 All HC

SCJ_1606_S · Shiv Shankar 2017 All HC

SCJ_1613_S · Awadhesh Kumar Upadhyay 2017 All HC

SCJ_1650_S · Ajay Prakash Srivastava 2017 All HC

SCJ_1915_S · Demand and citation quashed for breach... 2018 All HC

SCJ_682_S · Shamsul Qamar 2018 All HC

[34 more](#)

J-04 Uue assessment at 1.5x tariff not thrice 7 cases

Unamended s.126(6) fixes a 26.10.2004 theft/UUE assessment at 1.5 times the tariff. Charging thrice under 2002-Code Clause 6.17.2 is illegal; assessment and appeal are quashed and the AO is to re-determine at the statutory rate. Same cluster as SCJ-059, SCJ-227, SCJ-228, SCJ-638, SCJ-640, SCJ-678.

LEAD AUTHORITIES *Pankaj Kumar v. Kanpur Electric Supply Company and others*; *Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.*; *Vijay Pal Singh & Another v. Dakshinanchal Vidyt Vitran Nigam Ltd & others*

SCJ_698_S · Raj Kumar 2013 All HC

SCJ_640 · Venus Stone Crushing Co. Thru' Partner... 2010 All HC

SCJ_638 · Tejinder Singh 2018 All HC

SCJ_678 · Sri Dauji Cold Storage Pvt Ltd And Ano... 2018 All HC

SCJ_227 · Vijay Pal Singh & Another 2010 All HC

SCJ_228 · Vijay Pal Singh 2010 All HC

SCJ_188 · Ramveer Singh 2014 All HC

J-05 126 vs 135 distinct fields 5 cases

Foundational: Section 126 (civil, no mens rea, wider purposive 'unauthorised use' covering excess load/change of category under Explanation (b)(iv)) and Section 135 (criminal, mens rea) operate in different and distinct fields with no commonality; Sections 126-127 are a complete code, only the final Section 126(3) order is appealable, and Article 226 relief is confined to jurisdictional review.

LEAD AUTHORITIES *Executive Engineer (SOUTHCO) v. Sri Seetaram Rice Mill*; *M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.*

SCJ_1651_S · Ajay Prakash Srivastava 2017 All HC

SCJ_041 · Executive Engineer, Southern Electrici... 2011 SC

SCJ_042 · West Bengal State Electricity Distribu... 2019 SC

SCJ_243 · Subhashis Chatterjee 2011 All HC

SCJ_051 · Beeco Electrical India & Anr. 2012 All HC

J-06 Law as of final assessment date 4 cases

For determining which version of Section 126 (deposit condition, assessment rate) applies, the operative date is the date of the FINAL assessment, not the provisional assessment or the date the cause of action arose.

LEAD AUTHORITIES *Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.*

SCJ_753_S · Shailendra Kumar 2009 All HC

SCJ_945 · Chandra Kanti Rai 2012 All HC

SCJ_1056 · Rajan Singh Yadav 2013 All HC

SCJ_047 · Lalit Kumar Kapoor 2011 All HC

J-07 S.126 two stage hearing uue conclusion then quantum 4 cases

s.126 requires a hearing at two distinct stages — before the assessing officer records the conclusion of unauthorised use (guilt), and before final assessment (quantum); the recorded conclusion of unauthorised use is the jurisdictional condition precedent to a provisional assessment.

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others; Ashok Kumar v. State of U.P.*

SCJ_674_S · Kalpana Agarwal 2019 AII HC

SCJ_644_S · Mahavir Iron Foundry And Another 2023 AII HC

SCJ_635 · Ranjana Gupta 2019 AII HC

SCJ_158 · Ashok Kumar & Ors. 2008 AII HC

J-08 Assessment must engage objections with reasons 3 cases

As in the connected SCJ-273, the assessing authority did not consider the consumer's objections. The 23.10.2007 assessment and consequential orders were quashed and remitted for a fresh order under the Code after considering the objections.

SCJ_315_S · Kamakhya Steels Pvt. Ltd. & Another 2026 AII HC

SCJ_352 · Saurabh Agarwal 2025 AII HC

SCJ_273 · Kamakhya Steels Pvt. Ltd. 2026 AII HC

J-09 Assessment service must be proved else non receipt presumed 3 cases

If the licensee cannot establish the mode of service of a provisional assessment, non-receipt is presumed and the consumer is treated as denied his s.126(3)/Clause 8.1(b)(iii) opportunity of hearing; objections must then be decided afresh by a speaking order.

SCJ_177 · Mohammad Idrish 2011 AII HC

SCJ_192 · Ram Prakash Yadav 2014 AII HC

SCJ_193 · Yogendra Singh 2014 AII HC

J-10 Clause 9.3 service mode prerequisite to treating assessment final 3 cases

Because the checking report and provisional assessment were sent only under certificate of posting, they were not treated as duly served under 9.3; recovery under the citation was stayed until final assessment after registered-post service.

SCJ_801_S · Ramji Lal 2010 AII HC

SCJ_894_S · Mohan Bajpai 2012 AII HC

SCJ_119 · Shiv Shankar Giri 2011 AII HC

J-11 Interim stay of electricity recovery pending final assessment 3 cases

Recovery pursuant to an electricity demand notice may be stayed pending the writ where recovery is being pressed without the final assessment mandated by Section 126(3); such a stay is interim and falls away if the petition is ultimately dismissed.

LEAD AUTHORITIES *Vinod Kumar Agarwal v. State of U.P. & Others*

SCJ_1970 · Rajendra Auto Wheels Private Ltd. 2019 AII HC

SCJ_776 · Mohd. Shahjad 2010 AII HC

SCJ_1985 · Shareef Ahmad 2017 AII HC

J-12 Assessment must be by ee distribution not ee revenue 2 cases

A revised assessment bill and demand notice issued in purported exercise of s.135 read with clause 6.8(c) by the Executive Engineer (Revenue) were quashed. The power to pass the assessment lies with the Executive Engineer (Distribution).

SCJ_375_S · Chakradhari Cold Storage Pvt. Ltd. 2025 AII HC

SCJ_478_S · R.D. Ice & Cold Storage (P) Ltd. 2025 AII HC

J-13 Clause 8.1b personal hearing mandatory before final assessment 2 cases

After a consumer files objections to a theft-related provisional assessment, Clause 8.1(b)(iii) requires an actual personal hearing before any final assessment can be made; a bare 'final notice' reiterating the provisional figure, without a hearing or reasoned order, is unenforceable — reinforcing the corpus's cluster of s.126/Clause 8.1 procedural-strictness rulings (SCJ-069, SCJ-087, SCJ-092, SCJ-111).

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others*; *Kamil v. State of U.P. & Others*; *Hazi Mohd. Yaseen v. Paschimanchal Vidyut Vitran Nigam Ltd.*

SCJ_117 · Shishir Jain 2017 All HC

SCJ_191 · Arvind Kumar 2018 All HC

J-14 Excess load not unauthorised use 2 cases

Excess load or appliance installation within/around the contracted load is not 'unauthorised use' under Section 126 (para 6.9 of the Code); the remedy is the tariff's additional Fixed Charge, not a theft/UUE assessment.

SCJ_456 · Shahnaj Begum 2025 All HC

SCJ_039 · Kanpur Electricity Supply Co. Ltd. & A... 2011 All HC

J-15 No coercive action until final assessment 2 cases

As only a provisional assessment had been made, the Court held there was no occasion for coercive action and declined interim protection.

SCJ_1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

SCJ_560 · Rajesh Yadav 2024 All HC

J-16 Proper service of provisional assessment notice clause 6.8 2 cases

The department must show that the provisional assessment notice under Clause 6.8 was actually dispatched and served; absent anything on record showing service, the assessment and the consequential recovery fall.

SCJ_1982_S · Ramanuj Tripathi 2014 All HC

SCJ_257 · Bhajan Lal and Anr. 2011 All HC

J-17 Provisional and final assessment cannot be simultaneous 2 cases

When a consumer objects to a provisional assessment, the Executive Engineer must apply his mind to the objection before finalizing the assessment under the U.P. Electricity Supply Code, 2005. A mechanical proforma order that merely fills figures and does not consider the objection cannot be sustained..

SCJ_1051_S · Suresh Singh 2013 All HC

SCJ_1271 · Dinesh Kumar Gupta 2025 All HC

J-18 Uue period 365 days is fallback not default 2 cases

The 12-month/365-day period for a UUE assessment is a fallback used only when the actual period cannot be ascertained on recorded satisfaction; where ascertainable (e.g. from the date of connection) it must be used, and the period cannot predate the connection.

SCJ_661_S · Uco Bank 2017 All HC

SCJ_211 · Ram Bahadur 2016 All HC

J-19 Assessment final by consumer acceptance 1 case

An assessment finalised by the consumer's own written offer to pay in instalments (accepted by the licensee) cannot later be disputed as never having been finalised; his conduct amounts to acceptance/waiver of a formal final-order requirement.

SCJ_065 · Sartaj Rice Mill Thru' Its Partner Maq... 2015 All HC

J-20 Burden on licensee to prove unauthorised use 1 case

In a theft/unauthorised-use assessment the burden is on the department to prove commercial or unauthorised use; a farmer need not disprove it where his use is ancillary agricultural use within the sanctioned load.

SCJ_034 · Islam 2013 AII HC

J-21 Cgrf ombudsman no jurisdiction over s.126 1 case

CGRF/Ombudsman (creatures of subordinate regulation) have no jurisdiction to review a statutory Assessing Officer's Section 126 assessment or a Section 127 appellate order; the only remedy against such an assessment is under Sections 126/127 themselves. Anchors the later Full Bench holding (SCJ-043 Kisan Cold Storage) that the Ombudsman/CGRF scheme is a distinct consumer-grievance track confined to matters...

LEAD AUTHORITIES *Dakshinanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal, Lucknow*

SCJ_049 · M.D., Pakshimanchal Vidyut Vitran Niga... 2012 AII HC

J-22 Civil court barred s.145 for s.126 assessment 1 case

Section 145 bars the civil court from entertaining a suit challenging a s.126 assessment; the Electricity Act is a complete Code and s.9 CPC excludes such jurisdiction.

SCJ_207 · Executive Engineer, Distribution Divis... 2017 AII HC

J-23 Consumer must be associated in inquiry before final assessment 1 case

A recovery based only on an inspection/checking report, without associating the consumer in the inquiry (provisional assessment and hearing) before final assessment, violates natural justice and the rule of fair play and is arbitrary.

SCJ_1987_S · Anmol Laghu Udyog 2016 AII HC

J-24 Demand notice on provisional assessment is illegal 1 case

A demand notice recovering the amount assessed under the provisional assessment order is illegal once a final assessment order has been passed, and is quashed. Same Section 126 assessment cluster as SCJ-047 and SCJ-034.

SCJ_1268_S · Rameshwar 2023 AII HC

J-25 Deposit for interim restoration abides by fresh section 126 assessment 1 case

A sum deposited as a condition for interim restoration of supply abides by the fresh Section 126 / Para 6.8 assessment; any excess is refunded after adjusting dues and any shortfall is intimated to the consumer.

SCJ_1987_S · Anmol Laghu Udyog 2016 AII HC

J-26 Ex parte s.126 assessment requires hearing before recovery 1 case

A recovery certificate founded on an ex-parte provisional s.126 assessment, made without following the Supply Code's assessment/hearing procedure, cannot be coercively enforced until the consumer is given a hearing and a reasoned final assessment is passed.

SCJ_084 · Mohd Usman Ansari 2025 AII HC

J-27 Final assessment order mandatory under section 126 3 1 case

Section 126(3) contemplates a Final Order of Assessment after a Provisional Assessment; a Provisional Assessment treated as Final without a specific order, on the footing that no objections were filed, is prima facie improper. Same Section 126 cluster as SCJ-047 and SCJ-034.

SCJ_1267 · Abdul Gaffar @ G. Hussian 2017 All HC

J-28 Interim stay of final assessment on part deposit 1 case

On a prima facie Clause 8.1(b) challenge to a Final Assessment (no hearing; no finding that theft established) the Court found the matter required consideration and stayed proceedings under the Final Assessment Order subject to a Rs. 1,20,000 part-deposit, the order to vacate automatically on default — the same interim-stay-on-deposit posture as SCJ-1564 and SCJ-206.

SCJ_1974 · Arun Kumar Goel 2016 All HC

J-29 Malice in law vitiates s.126 assessment on fabricated report 1 case

A s.126 assessment founded on a checking report shown (through compelled personal affidavits) to be internally contradictory/fabricated is vitiated by malice in law, applying the doctrine that malice in law requires no proof of personal ill-will, only action without just cause or on a misrepresented factual basis — a significant procedural-fairness precedent in this corpus's s.126/s.135 assessment cluster.

LEAD AUTHORITIES *S.R. Venkatraman v. Union of India; Mukesh Kumar Agrawal v. State of U.P.; Somesh Tiwari v. Union of India*

SCJ_126 · Vimla Tiwari 2012 All HC

J-30 No objection to provisional assessment validates recovery 1 case

Where the assessee files no objection to a provisional assessment order for unauthorised use, the recovery proceedings are rightly initiated and a writ against the citation fails; the remedy is the Section 127 appeal. Same Section 126/127 cluster as SCJ-1269, SCJ-1266, SCJ-047.

SCJ_1270 · Ram Charan 2015 All HC

J-31 Objection to competence decided by assessing authority 1 case

The objection to the very competence to issue the Section 126(2) notice was directed to be raised before, and decided by, the competent authority in a reasoned order after hearing, rather than by the writ court.

SCJ_1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

J-32 Overdrawal is unauthorised use regardless of tariff change or revenue loss 1 case

Extends and crystallises Seetaram Rice Mill's core holding: excess-load consumption is 'unauthorised use of electricity' under Explanation (b)(iv) to s.126 in every case, independent of whether it changes tariff category or causes revenue loss, because the harm targeted by s.126 is systemic (grid integrity, voltage stability) not merely pecuniary — the single most significant s.126/Explanation(b) doctrinal...

LEAD AUTHORITIES *Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (Southco) v. Sri Seetaram Rice Mill*

SCJ_147 · Kerala State Electricity Board & Ors. 2022 SC

J-33 Para 6.8 non compliance vitiates assessment and recovery 1 case

Non-compliance with the Para 6.8 procedure (provisional assessment, objections, hearing and speaking order) for unauthorised use of electricity vitiates the proceeding and the demand/recovery notice issued pursuant thereto.

LEAD AUTHORITIES *Ashok Kumar & Ors. v. State of U.P. & Ors.; Kamil v. State of U.P. & Others*

SCJ_1987_S · Anmol Laghu Udyog 2016 All HC

J-34 Premature writ against provisional s.126 assessment 1 case

The Court refused to entertain a writ against a provisional assessment notice under Section 126(2), holding the challenge premature and relegating the consumer to file a detailed objection which the assessing authority could modify, confirm or discharge.

LEAD AUTHORITIES *GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.*

SCJ_1060 · Rukmani Ferro Pvt. Ltd. 2011 All HC

J-35 Provisional assessment must state basis and amount 1 case

A provisional assessment must contain the calculation and the amount assessed; a document lacking these is no assessment at all, and the consumer is entitled to have objections decided by a speaking order after hearing.

SCJ_172 · Suresh Kumar 2011 All HC

J-36 Provisional assessment power vests in executive engineer 1 case

Under the Supply Code, 2005 the Executive Engineer holds the provisional-assessment power; an Assistant Engineer (Revenue) calculation sheet issued on the EE's behalf is not the assessment, so a 'wrong officer / bad in law' challenge fails.

SCJ_1566 · Krishna Kumar Sharma 2018 All HC

J-37 S.126 assessing officer must personally inspect 1 case

Section 126 requires the assessing officer to conduct the inspection and then provisionally assess. A provisional assessment by the Executive Engineer founded on a Junior/Assistant Engineer's checking report is set aside; the licensee may initiate assessment afresh in accordance with that procedure.

LEAD AUTHORITIES *Executive Engineer v. M/s Sri Seetaram Rice Mill*

SCJ_380_S · Satyam Shukla 2025 All HC

J-38 S.126 final assessment attaining finality cannot be reopened except fraud 1 case

A final order of assessment under Section 126 that has attained finality cannot be re-opened by the assessing authority, save under inherent authority in cases of fraud or misrepresentation and after affording an opportunity of hearing.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

J-39 S.126 final assessment delay requires fresh hearing 1 case

An inordinate gap between provisional and final assessment (here, over two years) requires a fresh notice/hearing before the final assessment is passed; failure to do so violates natural justice regardless of the consumer's earlier default in objecting.

SCJ_111 · Sandeep Kesarwani 2014 All HC

J-40 Search seizure of uue gadget under clauses 4.33 4.34 1 case

The lawful response to a device used for unauthorised use is search and seizure under Clauses 4.33-4.34 (in the person's presence, with a signed seizure list), not disconnection.

SCJ_243 · Subhashis Chatterjee 2011 All HC

J-41 Supply code regulation cannot exempt from s.126 liability ultra vires 1 case

A landmark, sharply-reasoned ultra vires ruling: a State Commission's Supply Code, being delegated legislation under s.50/s.181(2)(x), cannot create a substantive carve-out from Section 126 liability that the parent Act's self-contained assessment code does not itself provide — reinforcing and extending Anis Ahmad's holding (already in this corpus at SCJ-139) that Supply Codes 'do not relate to' s.126 assessment,...

LEAD AUTHORITIES *U.P. Power Corporation Ltd. & Ors. v. Anis Ahmad; Sukhdev Singh & Ors. v. Bhagatram Sardar Singh Raghuvanshi & Anr.*

SCJ_147 · Kerala State Electricity Board & Ors. 2022 SC

J-42 Tariff under s.126 6 includes both fixed and energy charges 1 case

Confirms, via s.45(3)(a)'s definition, that 'tariff' for s.126(6) purposes includes both fixed charges and energy charges, foreclosing any judicially- or regulation-created category of unauthorised-use assessment limited to fixed charges alone.

SCJ_147 · Kerala State Electricity Board & Ors. 2022 SC

J-43 Unauthorised connected load detected in excess of sanction is assessable 1 case

Applies Punjab SEB v. Vishwa Caliber Builders' holding that a licensee's inability to timeously release a sanctioned enhancement does not excuse a consumer's overdrawal in the interim, and that an Ombudsman/adjudicatory authority commits jurisdictional error by directing regularisation/refund of amounts properly charged for such overdrawal absent statutory authorisation — reinforcing this corpus's...

LEAD AUTHORITIES *Punjab State Electricity Board v. Vishwa Caliber Builders Private Limited*

SCJ_147 · Kerala State Electricity Board & Ors. 2022 SC

K. Theft (s.135) & Chapter VIII of the Code 29 principles · 60 case-applications

Civil theft assessment, evidence, acquittal, and the Code's Chapter VIII machinery.

K-01 Clause 8.2x acquittal requires withdrawal of theft assessment 15 cases

A subsequent criminal acquittal on the s.135 charge, per Clause 8.2(X)(g)/(h), mandatorily requires withdrawal of the theft-based civil assessment and meter restoration — where such acquittal post-dates an appellate order, remand is required for the appellate authority to apply this clause.

SCJ_1769_S · Bhure Khan @ Mohd. Jahangeer 2018 All HC

SCJ_1857_S · Tariq 2018 All HC

SCJ_658_S · Akhalak Ahmad 2020 All HC

SCJ_547_S · Ramesh Chandra Kasera 2024 All HC

SCJ_643 · Laxmi Oil Expeller 2009 All HC

SCJ_668 · Radha Krishna 2011 All HC

SCJ_1204 · Mohd. Mansoor 2014 All HC

SCJ_1890 · Radha Rani 2018 All HC

SCJ_1333 · Mohd. Kasim 2015 All HC

SCJ_974 · Liladhar Tularam Ice Factory 2018 All HC

5 more

K-02 Theft cannot rest on mere possibility 5 cases

Extends the SCJ-070 / SCJ-273 line from MRI-pattern or mixed-feeder 'possibility of theft' to a restart-inspection that finds an 11 kV cable on the floor and infers that the consumer could connect it to an energised line by artificial means. Without artificial means found on the spot, the s.135(1) proviso presumption is misplaced; a cable in the premises cannot indict on the hypothesis that theft is possible....

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others; Modern Terry Towels Ltd. v. Gujarat Electricity Board*

SCJ_315_S · Kamakhya Steels Pvt. Ltd. & Another 2026 All HC

SCJ_285_S · Sangam Crusher Works & Another 2026 All HC

SCJ_286_S · K.G.N. Stone Crusher Mill & Another 2026 All HC

SCJ_070 · Urmila Oil Industries 2019 All HC

SCJ_273 · Kamakhya Steels Pvt. Ltd. 2026 All HC

K-03 Authority to assess theft under clause 7.3 3 cases

The petitioner's prima facie contention that respondent no.3 was not authorized under Clause 7.3(I) to assess electricity theft warranted interim relief; the authority question was never decided (writ dismissed as not pressed). Same authority-to-assess line as SCJ-859, SCJ-900 and SCJ-1566.

SCJ_900 · Yogendra 2013 All HC

SCJ_1977 · Marsood Khan @ Maqsood Khan 2016 All HC

SCJ_859 · Sanjay Kumar Upadhayaya 2021 All HC

K-04 Clause 5.6d meter testing procedure mandatory for theft finding 3 cases

A theft finding premised on a defective/tampered meter requires compliance with Clause 5.6(d)'s testing procedure (notice, opportunity to be present, consumer's right to dispute per 5.6(c)); non-compliance (no MRI, no proper laboratory testing) undermines the evidentiary basis for both the assessment and any criminal prosecution.

LEAD AUTHORITIES *M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd. & Another; Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.*

SCJ_682_S · Shamsul Qamar 2018 All HC

SCJ_114 · Saurabh Agrawal & Another 2017 All HC

SCJ_161 · Rituraj 2017 All HC

K-05 Theft assessment is under s.126 appealable s.127 3 cases

Foundational clarification for the corpus: a theft-based assessment (Clause 8.1-8.3 of the Code) remains a Section 126 assessment appealable under Section 127; it is never treated as a non-appealable Section 135 order. Confirms and extends SCJ-011 (Chairman, WBSEB v. Syed Mukbul Hossain) and the Clause 6.8/8.1 line (Ashok Kumar, Mohit Paper Mills).

LEAD AUTHORITIES *Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors.; Ashok Kumar & Others v. State of U.P. & Others*

SCJ_743 · Sunder Lal Chaubey 2009 All HC

SCJ_936 · Ram Kumar 2012 All HC

SCJ_069 · Trikoot Iron & Steels Castings Ltd. 2012 All HC

K-06 Theft must be established not presumed 3 cases

A 2002-Code para 6.17 theft finding cannot be presumed from a higher-capacity transformer and cable. Para 2.2(av) requires bypass, meter-tampering, or illegal tapping; absent those facts, and with the MDI in order, the case is excess sanctioned load under para 6.18. Same cluster as SCJ-060.

SCJ_632_S · Mohan Dairy & Cold Storage Bulandshahar 2011 All HC

SCJ_644_S · Mahavir Iron Foundry And Another 2023 All HC

SCJ_060 · Mohit Paper Mills Ltd. & Anr. 2011 All HC

K-07 Clause 8.1b theft notice natural justice 2 cases

Extends the Ashok Kumar/Clause 6.8 line: a theft assessment fails not only for skipping the prescribed procedure but also where the notice/final order misreads or mischaracterises the checking report itself (e.g. conflating a test/double meter's findings with the main meter's), since the consumer is thereby condemned on a factual basis the evidence does not support.

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others*

SCJ_057 · Kissan Chilling Udyog & Anr. 2014 All HC

SCJ_048 · Latif 2019 All HC

K-08 Defective meter not per se theft distinct assessment regime 2 cases

A defective meter, absent a finding that the consumer rendered it defective, is not per se theft/UUE under s.126 and is governed by the distinct defective-meter rules (Clauses 5.6/5.8), not the s.126 route.

SCJ_315_S · Kamakhya Steels Pvt. Ltd. & Another 2026 All HC

SCJ_189 · Krishna Kumar Bhargava 2014 All HC

K-09 Owner of premises is consumer liable for theft assessment 2 cases

Applied to the Secretary of a registered society who occupied the premises of the society's connection. Consumer (s.2(15), followed in the 2005 Code) plus occupier (Clause 2.2(oo)) plus person (s.2(49)) made him liable for the theft assessment on a direct cable to the distribution line. Same cluster as SCJ-121 / SCJ-179 (owner as consumer), here occupier-secretary rather than owner.

SCJ_633 · Anil Shastri 2011 All HC

SCJ_179 · Paschimanchal Vidyut Vitaran Nigam Ltd... 2015 All HC

K-10 Reasonable opportunity theft assessment 2 cases

Supplying the MRI with the final order, while the order itself says clause 8.2(i) remains uncomplied and further proceedings are to be taken, is not a reasonable opportunity before a theft assessment is finalised.

LEAD AUTHORITIES *Khem Chand v. Union of India; Transmission Corporation of A.P. Ltd. v. Sri Rama Krishna Rice Mill*

SCJ_706_S · Mayur Sheetgrah Pvt. Ltd. 2014 All HC

SCJ_047 · Lalit Kumar Kapoor 2011 All HC

K-11 Theft uue enforced via code 2 cases

A compoundable Section 135 theft offence is to be compounded under the Electricity Supply Code, 2005 procedure; the Code supplies the enforcement / compounding machinery for theft (and, cognately, unauthorised use under Section 126).

SCJ_004 · Ajmal 2015 All HC

SCJ_277 · Anil Kumar Upadhyay 2026 All HC

K-12 126 vs 135 distinct fields but 126 still applies to theft 1 case

Confirms and extends this corpus's tracked doctrine (SCJ-069 Trikoot Iron & Steels) that theft-based assessment proceeds under s.126 (never under s.135 alone), clarifying (contra a misreading of Southco v. Seetaram Rice Mill's 'different fields' language) that s.126 assessment remains mandatory even where a s.135 FIR/Special Court trial is simultaneously pending – the two tracks (assessment for the civil dues,...

LEAD AUTHORITIES *Executive Engineer, Southern Electricity Supply Company of Orissa Ltd. (Southco) v. Sri Seetaram Rice Mill; M/s Paliwal Alloys (Pvt) Ltd. v. U.P. Power Corporation Ltd.*

SCJ_111 · Sandeep Kesarwani 2014 All HC

K-13 Check meter and substation readings relevant to theft assessment 1 case

In a theft/UUE assessment, the reading of an outdoor check meter (found O.K.) and of the sub-station accounting meter (line-loss records tallying at both ends) are relevant factors the assessing officer must consider before concluding theft.

SCJ_164 · Parmarth Steels & Alloys (Pvt.) Ltd. &... 2013 All HC

K-14 Clause 8.1 8.2 govern theft assessment not 6.8 1 case

Confirms and applies the specific-over-general canon (from Mohit Paper Mills) that Clauses 8.1/8.2, not Clause 6.8, govern theft-based (s.135) assessment, including the mandatory 15-working-day notice and 1.5x (not 3x) tariff multiplier.

LEAD AUTHORITIES *M/s Mohit Paper Mills Ltd. & Another v. PVVNL & Others*

SCJ_121 · Kunwar Sarvesh Kumar Singh 2011 All HC

K-15 Deemed disconnection does not bar theft assessment in writ 1 case

A deemed-disconnection plea under Clauses 4.36-4.38 does not, in a writ, negate a theft assessment where unauthorised drawing continued after disconnection; the point is for the Section 127 appeal.

SCJ_1269 · Ashok Kumar Ajmera 2012 All HC

K-16 Final assessment requires hearing and finding of theft 1 case

The contentions that Clause 8.1(b) requires an opportunity of being heard and a recorded finding that 'a case of theft has been established' before a Final Assessment were held to 'require consideration' and to warrant interim protection, but were left undecided as the writ became infructuous.

SCJ_1974 · Arun Kumar Goel 2016 All HC

K-17 Interim stay of theft assessment on bank guarantee of half 1 case

Following the leading writ petition, the interim stay of the provisional assessment was made conditional on the consumer furnishing a bank guarantee of half the provisional bill, realisable only after finalisation and only to the extent the final amount exceeded it, with future charges to be paid meanwhile.

SCJ_1977 · Marsood Khan @ Maqsood Khan 2016 All HC

K-18 New connection independent of undetermined theft assessment 1 case

Supply on payment of the estimate is independent of an as-yet-undetermined theft-assessment liability; the licensee cannot withhold a new connection for such an amount under Clause 4.3, but may take security for it.

LEAD AUTHORITIES *Dr. Meena Chaudhary v. BSES Rajdhani Power Ltd.*

SCJ_223 · Virendra Kumar Mittal 2014 All HC

K-19 No disconnection power for uue only for theft 1 case

Code Clause 8.1 disconnection applies only to theft (s.135); a UUE case (s.126) does not attract it, and a domestic connection cannot be disconnected for UUE.

SCJ_243 · Subhashis Chatterjee 2011 All HC

K-20 No theft finding subject to special court civil liability s.154 1 case

Even a finding of 'no theft' by the appellate authority remains subject to the Special Court's determination of civil liability for theft under Sections 154(5)-(6) read with Sections 153 and 155; the licensee's revenue interest being thereby protected, the finding is no ground to interfere in writ.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

K-21 Owner liable as consumer for theft regardless of tenancy claim 1 case

The s.2(15) 'consumer' definition's broad second limb (premises connected for receiving electricity) extends civil assessment liability for theft to a property owner even where an unsubstantiated tenancy is claimed, though criminal mens rea remains a separate question — an important gloss on who bears assessment liability, complementing this corpus's transferee/occupant-liability cluster (SCJ-090, SCJ-098).

SCJ_121 · Kunwar Sarvesh Kumar Singh 2011 All HC

K-22 Permanent lok adalat no adjudicatory jurisdiction over theft offence 1 case

A Permanent Lok Adalat may conciliate but cannot adjudicate on merits a dispute relating to electricity theft; s.22-C(8) ousts adjudicatory jurisdiction over any offence-related dispute regardless of compoundability or whether an FIR was lodged.

LEAD AUTHORITIES *Torrent Power Ltd. v. State of U.P.*

SCJ_159 · Pashchimanchal Vidyut Vitran Nigam Ltd. 2018 All HC

K-23 S.126 assessment available for theft unauthorised use covers theft 1 case

'Unauthorised use of electricity' in Explanation (b) to Section 126 is comprehensive enough to cover theft under Section 135; the scheme of the 2003 Act (with the third proviso to Section 135(1A)) contemplates assessment under Section 126 for all categories of unauthorised use, including theft.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

K-24 S.127 appellate power co extensive competent to decide theft 1 case

As Section 127 prescribes no parameters for deciding the appeal, the appellate authority's power is co-extensive with the assessing authority's and it is competent to decide whether the case is one of theft (para 8.1, Supply Code 2005) or unauthorised use (para 6.8); a reasoned finding is not disturbed in writ merely because a second view is possible.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

K-25 Section 56 2 two year bar inapplicable to theft 1 case

The consumer's plea that recovery beyond two years was barred by Section 56(2) was rejected prima facie: the sub-section addresses default in payment of charges, not theft. Same Section 56(2) cluster as SCJ-001, SCJ-406, SCJ-477.

SCJ_1264 · Joginder Singh 2023 All HC

K-26 Slow metering assessment inconsistent with parallel theft prosecution 1 case

Where a licensee itself assesses and fully recovers disputed consumption as slow-metering charges under Clause 5.6(c)(ii) (a civil, non-theft remedy), and a s.127 appellate authority conclusively finds s.135 inapplicable on the same facts, a parallel/continuing s.135 theft prosecution on the identical inspection report is an abuse of process.

SCJ_114 · Saurabh Agrawal & Another 2017 All HC

K-27 Surcharge vs theft penalty distinction 1 case

Where power is taken during restricted hours with (implicit or express) permission/acquiescence of the licensee, only the tariff surcharge applies; taking power surreptitiously/by theft during restricted hours instead attracts penalty under the theft provisions, not merely a surcharge.

LEAD AUTHORITIES *Prachi Leathers v. UPPCL*

SCJ_094 · Northern Coalfield Ltd. 2005 All HC

K-28 Theft demand fresh order 1 case

Where a theft-of-electricity demand is withdrawn by the licensee with a proposal to pass a fresh order after hearing, the High Court issues no further writ direction, save to observe that the fresh order must strictly follow the procedure prescribed by the U.P. Electricity Supply Code, 2005.

SCJ_553 · Ghanendra Singh 2024 All HC

K-29 Theft inspection procedure mandatory leave to appeal refused 1 case

Leave to appeal by the distribution licensee against acquittal on a charge of electricity theft is refused where the trial court found that the mandatory inspection procedure in Chapter VIII of the U.P..

SCJ_336_S · Madhyanchal Vidyut Vitran Nigam Ltd. 2025 All HC

L. Recovery of assessment, citations & the 1958 Act 14 principles · 29 case-applications

When recovery may issue, stay pending appeal, tehsil citations, and collection charges.

L-01 No recovery without final assessment clause 8.1(b) 11 cases

Recovery of Rs.40,856 on a provisional theft assessment, without a speaking final assessment, was stayed as contrary to clause 8.1(b).

SCJ_722_S · Vijaybir Singh 2009 **All HC**

SCJ_724_S · Prem Singh 2009 **All HC**

SCJ_737_S · Rajendra Prasad 2009 **All HC**

SCJ_738_S · Rajesh Kumar 2009 **All HC**

SCJ_803_S · Rajendra Kumar Gupta 2010 **All HC**

SCJ_1072_S · Theft-dues recovery without prior prov... 2013 **All HC**

SCJ_713 · Mahipal Alias Mahipal Singh 2009 **All HC**

SCJ_730 · Dharendra Pratap Singh 2009 **All HC**

SCJ_717 · Sonu 2018 **All HC**

SCJ_2002 · Yadu Nath Parashar 2019 **All HC**

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L-02 Final s.126 assessment mandatory precondition to recovery citation 5 cases

A recovery citation for electricity dues cannot issue on a provisional assessment; a final assessment order under Section 126(3) - recording service and made by a reasoned order even where no objection is filed - is a mandatory precondition to recovery.

LEAD AUTHORITIES *Vinod Kumar Agarwal v. State of U.P. & Others*

SCJ_895_S · Devi Lal @ Tutti Lal 2012 **All HC**

SCJ_898_S · Final s.126(3) assessment mandatory be... 2012 **All HC**

SCJ_1982_S · Ramanuj Tripathi 2014 **All HC**

SCJ_145 · Vinod Kumar Agarwal 2012 **All HC**

SCJ_176 · Rakesh 2016 **All HC**

L-03 Recovery must rest on final assessment order 2 cases

Recovery under Section 126 must be founded on the final assessment order, not the provisional assessment; quashing the demand notice leaves the assessee at liberty to challenge the final assessment order separately. Companion to the provisional/final-order point in SCJ-1267.

SCJ_1236_S · Rakesh Kumar 2014 **All HC**

SCJ_1268_S · Rameshwar 2023 **All HC**

L-04 Collection charges only on tehsil recovery not direct deposit 1 case

Collection / recovery charges are leviable only where the dues are actually recovered by the Tehsil (revenue) authorities; where the consumer deposits the dues directly with the Electricity Department, no collection charges arise.

SCJ_707 · Baba Ice and Cold Storage Pvt. Ltd. 2010 **All HC**

L-05 Collection charges waived on timely payment under instalment order 1 case

A writ order granting instalments under Clause 6.14 and waiving collection charges on timely full payment bars recovery of collection charges once the dues are fully paid and the demand notice recalled; recovery thereafter, with arrest and without notice, is malafide and contumacious.

SCJ_707 · Baba Ice and Cold Storage Pvt. Ltd. 2010 **All HC**

L-06 No recovery certificate without final section 126 3 assessment 1 case

No recovery certificate for electricity dues is to be issued until a final assessment is made in a theft case under sub-section (3) of Section 126 of the Electricity Act, 2003 after a reasonable opportunity of hearing; recoveries issued without a final assessment are to be withdrawn - applied here to stay recovery on the impugned demand notice at the interim stage.

LEAD AUTHORITIES *Vinod Kumar Agarwal v. State of U.P. & Others*

SCJ_1985 · Shareef Ahmad 2017 **All HC**

L-07 Prescribed authority must be notified under 1958 act 1 case

An officer can exercise recovery powers as a 'prescribed authority' under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 only if notified as such; absent notification, s.3 demand notices are invalid.

SCJ_158 · Ashok Kumar & Ors. 2008 **All HC**

L-08 Recovery citation abides billing determination 1 case

A recovery citation under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 for disputed electricity dues is not permitted to proceed until the Executive Engineer determines the billing dispute, and then only if dues are found recoverable in accordance with law.

SCJ_2191 · Siya Ram 2018 **All HC**

L-09 Recovery citation conceded incorrect billing 1 case

On the electricity department's concession that a demand under recovery was incorrectly billed and did not represent actual dues, the Allahabad High Court quashed the recovery citation dated 5 February 2018, stayed enforcement of the 19 February 2018 demand bill

SCJ_1933 · S.S. Industries 2018 **All HC**

L-10 Recovery citation incorrect bills 1 case

A writ to quash a citation for recovery of electricity dues of Rs. 57,495 was dismissed. The petitioner had not challenged the citation and had not produced the bills. No ground was made out to quash the citation. It remains open to take steps under the U.P..

SCJ_950 · Mahendra Nath 2012 **All HC**

L-11 Recovery citation kept in abeyance pending fresh objection 1 case

On reopening the assessment for objection, the recovery citation was kept in abeyance for two months or till the authority's final decision, which the citation is to abide.

SCJ_1271 · Dinesh Kumar Gupta 2025 **All HC**

L-12 Recovery demand notice is consequential not independently challengeable 1 case

A Section 3 recovery demand notice that merely calls for payment of electricity dues on unchallenged regular bills is a consequential action, not an independently challengeable order; absent a challenge to a regular bill there is no provision under which it can be assailed in writ.

SCJ_1984 · Imran Ahmad 2018 **All HC**

L-13 Recovery must be withdrawn not merely deferred on set aside 1 case

When the final assessment is set aside, the recovery/citation must be withdrawn, not merely 'kept in abeyance' or deferred; deferring it is not compliance with the order.

SCJ_154 · Arup Kumar Mitra 2014 **All HC**

L-14 Recovery objection goes to assessing authority not executing tehsildar 1 case

An objection to the correctness of an electricity demand lies before the assessing/electricity authority (or on appeal), not before the executing Tehsildar, who is confined to execution and cannot vary the demand.

LEAD AUTHORITIES *Chandra Kishore Jha v. Mahabir Prasad*

SCJ_170 · Heera Lal 2009 All HC

M. Fora — CGRF, Ombudsman, Inspector & Lok Adalat 21 principles · 178 case-applications

Who may decide what: consumer fora, ombudsman limits, Electrical Inspector, PLA.

M-01 Clause 7.10 forum ombudsman route for billing grievances 139 cases

Billing grievances against a licensee are to be routed through the Clause 7.10 Consumer Grievance Redressal Forum (and Ombudsman on appeal), a specific licensee-grievance mechanism distinct from and preferred over the general District Consumer Forum route — reinforcing the s.42(5)/(6)-equivalent individual-grievance routing principle already tracked in this corpus (SCJ-076, MERC v. Reliance Energy).

SCJ_704_S · The Purvanchal Vidyut Vitran Nigam Ltd... 2010 All HC

SCJ_896_S · Chandpur Enterprises Ltd. 2012 All HC

SCJ_918_S · Deepak Mishra 2012 All HC

SCJ_1342_S · Hemant Kumar 2015 All HC

SCJ_1356_S · Surya Narayan 2015 All HC

SCJ_1460_S · Shakambhari Peetham 2016 All HC

SCJ_401_S · Guddi Kesarwani 2025 All HC

SCJ_734 · Ganesh Polytex Ltd. 2009 All HC

SCJ_804 · M. Das Binani (Binani Dharmshala) 2010 All HC

SCJ_739 · Abdul Kalaam 2010 All HC 129 more

M-02 Ombudsman cannot direct contrary to act and code 10 cases

An Electricity Ombudsman award that waives tariff charges, or otherwise directs the licensee to act against the Electricity Act, 2003 and the Supply Code, 2005, is without authority and is set aside. Applied via Narinder Chand Hem Raj: no direction against the provisions of the Act and the Code.

LEAD AUTHORITIES *Narinder Chand Hem Raj v. Lt. Governor, Himachal Pradesh; U.P. Power Corporation Ltd. v. Ombudsmen and 2 others* (Writ-C No. 1003603 of 2008, 21.03.2023)

SCJ_2112_S · Executive Engineer (Distribution), Ele... 2019 All HC

SCJ_699_S · Dakshinanchal Vidyut Vitran Nigam Ltd.... 2022 All HC

SCJ_700_S · U.P. Power Corp. Ltd. Through Executiv... 2023 All HC

SCJ_701_S · U.P. Power Corp. Ltd. Through Executiv... 2023 All HC

SCJ_702_S · U.P. Power Corp. Ltd. Through Executiv... 2023 All HC

SCJ_490_S · U.P. Power Corp. Ltd. Through Executiv... 2025 All HC

SCJ_491_S · U.P. Power Corp. Ltd. Through Executiv... 2025 All HC

SCJ_492_S · U.P. Power Corp. Ltd. Through Executiv... 2025 All HC

SCJ_493_S · U.P. Power Corp. Ltd. Through Executiv... 2025 All HC

SCJ_494_S · U.P. Power Corp. Ltd. Through Executiv... 2025 All HC

M-03 Bill correctness under clause 6.5 not cgrf or ombudsman 5 cases

Prima facie, the correctness of a consumption / supplementary bill is challengeable only under clause 6.5 of the Supply Code; the CGRF and the Electricity Ombudsman lack competence over bill-correctness (Anis Ahmad). Same Anis Ahmad line as SCJ-1561; cf. SCJ-049 and SCJ-256 on the limits of CGRF / Ombudsman competence.

LEAD AUTHORITIES *U.P. Power Corporation Ltd. v. Anis Ahmad*

SCJ_1822 · Ram Autar Singh 2018 All HC

SCJ_2076 · Haridwar Gupta 2019 All HC

SCJ_2146 · Lalita Prasad Pathrol 2019 All HC

SCJ_2178 · Mukesh Pratap Singh (Chauhan) 2019 All HC

SCJ_1565 · Paschimanchal Vidyut Vitran Nigam Ltd.... 2023 All HC

M-04 Code forum not for tortious damages 3 cases

The Code's grievance forum (CGRF/Ombudsman) and the Act's overriding clause do not cover a claim of tortious damages for wrongful disconnection; such claims lie before the Lok Adalat / consumer fora.

LEAD AUTHORITIES *Bar Council of India v. Union of India*; *United India Insurance Co. Ltd. v. Ajay Sinha*; *S.N. Pandey v. Union of India*

SCJ_015 · Dakshinanchal Vidyut Vitran Nigam Ltd.... 2012 All HC

SCJ_025 · Executive Engineer, Electricity Distri... 2018 All HC

SCJ_019 · Divisional Engineer, Electricity Distr... 2018 All HC

M-05 Cgrf jurisdiction covers billing and tariff disputes 2 cases

The CGRF under Section 42(5) EA2003 and the UPERC 2007 Regulations can decide a consumer's excess / wrong-billing and tariff-interpretation grievance; the restrictive 'grievance' definition in Reg. 2(n) does not oust it because 'complaint' in Reg. 2(e) is wide. Cf. the CGRF / Ombudsman-jurisdiction line in SCJ-256 and SCJ-049.

SCJ_1562_S · Shree Gopala Iron (India) Ltd. & Anr. 2012 All HC

SCJ_1983_S · Executive Engineer, Electricity Rural ... 2017 All HC

M-06 Ombudsman award challengeable only on s.34 arbitration grounds 2 cases

An Electricity Ombudsman's award is akin to an arbitral award, challengeable only on grounds similar to s.34 of the Arbitration and Conciliation Act, 1996; a conciliated settlement is challengeable only for want of jurisdiction or fraud.

LEAD AUTHORITIES *Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal (Electricity Ombudsman)*

SCJ_260 · Purvanchal Vidyut Vitran Nigam Ltd., B... 2008 All HC

SCJ_258 · Executive Engineer, Electricity Urban ... 2010 All HC

M-07 Ombudsman remedy consumer only 2 cases

Confirms, on Clause 7.10 of the Supply Code and Section 42(5)-(7), that only the consumer (not the licensee) may approach the CGRF/Ombudsman — an independent DB ruling reaching the same conclusion later confirmed by the Full Bench in Kisan Cold Storage (SCJ-043) construing the parallel UPERC Regulations, 2007 provision.

LEAD AUTHORITIES *Jindal Poly Films Limited v. U.P. Electricity Regulatory Commission*

SCJ_050 · M.K. Pathak, Executive Engineer 2018 All HC

SCJ_043 · Kisan Cold Storage & Ice Factory 2019 All HC

M-08 Permanent lok adalat jurisdiction over public utility electricity grievance 2 cases

A Permanent Lok Adalat may entertain a consumer's grievance over refusal of an electricity connection; its jurisdiction is in addition to, not in derogation of, the Act's fora.

LEAD AUTHORITIES *Bar Council of India v. Union of India*

SCJ_2072 · Executive Engineer, Electricity Distri... 2019 All HC

SCJ_249 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 All HC

M-09 Bill computation in permanent lok adalat award 1 case

A distribution licensee's writ against a Permanent Lok Adalat award directing computation of an electricity bill was dismissed. An oral plea that the Adalat had skipped conciliation before deciding the claim was not pleaded in the petition and was not entertained..

SCJ_2075 · Madhyanchal Vidyut Vitran Nigam Limited 2019 **All HC**

M-10 Cgrf no jurisdiction over transmission line accident property loss 1 case

The CGRF cannot award compensation for property loss from a transmission-line accident; its jurisdiction covers supply/billing/tariff grievances, not accident-related property damage.

SCJ_256 · Suresh Chand Bansal 2014 **All HC**

M-11 Change of forum not mere procedure 1 case

A change of forum is not a matter of pure procedure; once proceedings are validly initiated before a forum, that vested right continues despite a later change of jurisdiction, unless the legislature clearly provides otherwise.

LEAD AUTHORITIES *CIT v. R. Sharadamma*; *CIT v. Dhadi Sahu*

SCJ_008 · Aruna Bhargava 2012 **All HC**

M-12 Consumer forum jurisdiction over assessment 1 case

Following UPPCL v. Anis Ahmad, a Consumer Grievance Redressal Forum has no power to redress a dispute that is not a “service” or “complaint” under ss. 2(1)(o) and 2(1)(c) of the Consumer Protection Act, 1986..

SCJ_877_S · Consumer forum has no jurisdiction ove... 2016 **All HC**

M-13 Consumer grievance redressal forum remedy clause 7.10 1 case

If still aggrieved after the Executive Engineer's determination, the consumer may approach the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

SCJ_2191 · Siya Ram 2018 **All HC**

M-14 Delayed billing and supply code forum 1 case

A flour-mill consumer who had deposited charges under a 2012 High Court order and whose meter had been sealed sought a writ for non-issuance of bills and for payments of 2004..

SCJ_1140 · Peetam Singh 2014 **All HC**

M-15 Lok adalat cannot direct action contrary to code 1 case

A Lok Adalat cannot direct the licensee to grant a connection in a manner contrary to the Act and the Supply Code.

SCJ_249 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 **All HC**

M-16 Meter correctness dispute referred to electrical inspector 1 case

Absent any allegation of theft or tampering, a dispute about whether a meter records correctly must be decided by the Electrical Inspector (s.26(6) IEA 1910), who alone may estimate consumption and fix the amount; the licensee cannot self-assess. The 2003 regime carries a parallel scheme (Code 2005, Clauses 5-6).

LEAD AUTHORITIES *Madhya Pradesh Electricity Board v. Smt. Basantibai*

SCJ_167 · U.P. Rajya Vidyut Parishad 2015 **All HC**

M-17 Mixed feeder not independent feeder ombudsman cannot override code 1 case

A mixed feeder serving multiple unrelated consumers is not an 'independent feeder' under Clause 2.2(ff); an Electricity Ombudsman award directing supply via a mixed feeder in derogation of Clause 3.4(a) exceeds Regulation 11 jurisdiction and is quashed.

LEAD AUTHORITIES *Punjab State Electricity Board v. Vishwa Calibere Builders Pvt. Ltd.*

SCJ_123 · Sigma Castings Ltd. & Another 2013 AII HC

M-18 Ombudsman cannot withdraw unappealed cgrf relief 1 case

On a consumer's representation, the Electricity Ombudsman cannot take away part of the relief CGRF had granted when the licensee filed no appeal. Unchallenged CGRF relief is final between the parties (Authorised Officer (Land Reforms)); CGRF on remand is equally barred from withdrawing it.

LEAD AUTHORITIES *Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty*

SCJ_552_S · Prakash Chandra Gupta 2024 AII HC

M-19 Ombudsman may infer defective meter from consumption pattern 1 case

Where the licensee never asked the Ombudsman to have the meter checked, the Ombudsman may still treat the meter as defective on the licensee's own records and an unexplained more-than-tenfold consumption spike, and direct average billing; the writ court will not interfere with that reasoned award.

SCJ_704_S · The Purvanchal Vidyut Vitran Nigam Ltd... 2010 AII HC

M-20 S.26 6 confined to meter correctness not bill disputes 1 case

The Electrical Inspector's s.26(6) jurisdiction is limited to a live meter-correctness dispute; it does not extend to disputes over bills or to theft/fraud/tampering assessments.

LEAD AUTHORITIES *Bombay Electricity Supply and Transport Undertaking v. Laffans (India) (P) Ltd.*

SCJ_262 · I.G. Shoes Pvt. Ltd. 2016 AII HC

M-21 S.26 6 inapplicable to fraud tampering disputes 1 case

Confirms the well-settled distinction (M.P. Electricity Board v. Basantibai; Rupa Ice Factory; Sub-Divisional Officer (P), UHBVNL v. Dharam Pal) that s.26(6) of the 1910 Act, confined to genuine meter-correctness disputes referable to an Electrical Inspector, has no application to fraud/tampering allegations, which are instead governed by the licensee's own statutory Supply Code tampering provisions — directly...

LEAD AUTHORITIES *Madhya Pradesh Electricity Board & Ors. v. Smt. Basantibai; State of W.B. v. Rupa Ice Factory (P) Ltd.*

SCJ_151 · Western Electricity Supply Co. of Oris... 2014 SC

N. Appeals (s.127) & statutory remedies 12 principles · 28 case-applications

The section 127 appeal, independent judgment, pre-deposit, and the vested right of appeal.

N-01 Relegation to section 127 appeal on merits limitation not examined 6 cases

On relegating a belated assessee to the Section 127 appeal, the writ court may fix a time to appeal and direct the appellate authority to decide on merits without going into limitation, neutralising the delay.

SCJ_1270 · Ram Charan 2015 AII HC

SCJ_2016 · Vijay Kumar 2019 AII HC

SCJ_2135 · Kalam 2019 AII HC

SCJ_2188 · Har Prasad 2019 AII HC

SCJ_2162 · Sarju @ Sarju Prasad 2019 AII HC

SCJ_2180 · Nawab Hasan 2019 AII HC

N-02 S.127 appeal lies only against final order not provisional assessment 5 cases

An appeal under Section 127 is maintainable only against a final order under Section 126; a provisional assessment (even a revised one issued during the appeal, on which no final order is passed) is not appealable, requires no amendment of the memo of appeal, and does not render the pending appeal infructuous.

SCJ_1059_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2010 All HC

SCJ_2038 · Abdul Ajij 2019 All HC

SCJ_2130 · Babulal 2019 All HC

SCJ_2164 · Anil Kumar 2019 All HC

SCJ_2173 · Magrub Alam 2019 All HC

N-03 Recovery of assessment stayed pending s.127 appeal 4 cases

Where an earlier order permitted a s.127 appeal on a part-deposit and restrained recovery pending the appeal, the licensee cannot recover the assessment while the appeal is undecided and no stay has been granted against that restraint.

SCJ_673 · Sijaria Ice Gramodhyog Sultanpura & Ot... 2010 All HC

SCJ_329 · Gauri Prasad 2026 All HC

SCJ_305 · Saurabh Agarwal 2026 All HC

SCJ_218 · Paliwal Alloys (Pvt.) Ltd. 2009 All HC

N-04 S.127 appellate authority must exercise independent judgment 4 cases

An Appellate Committee that does not decide the checking report or the assessment, and rests the appeal on a counsel's concession of theft recorded only in the operative portion and disputed as unauthorised, has not independently adjudicated; the order is quashed.

LEAD AUTHORITIES *Himalayan Coop. Group Housing Society v. Balwan Singh*

SCJ_640 · Venus Stone Crushing Co. Thru' Partner... 2010 All HC

SCJ_673 · Sijaria Ice Gramodhyog Sultanpura & Ot... 2010 All HC

SCJ_635 · Ranjana Gupta 2019 All HC

SCJ_126 · Vimla Tiwari 2012 All HC

N-05 No final order defeats section 127 appeal 2 cases

Where no Final Assessment Order under Section 126 is passed, the assessee is prima facie deprived of the Section 127 appeal, warranting interim protection against recovery. Related to the Section 127 remedy considered in SCJ-1266.

SCJ_1267 · Abdul Gaffar @ G. Hussian 2017 All HC

SCJ_2131 · 4d Mission Charitable Trust 2019 All HC

N-06 Appellate authority cannot exceed limited remand 1 case

On a limited remand, the appellate authority is confined to the remitted question and cannot reverse findings of the remanding court that have attained finality.

SCJ_179 · Paschimanchal Vidyut Vitaran Nigam Ltd... 2015 All HC

N-07 Appellate authority must give reasons for disagreeing with acquittal 1 case

An appellate authority cannot dismiss the appeal without considering a final criminal acquittal or recording reasons for not agreeing with it; doing so is perverse.

SCJ_247 · Citi Hotel 2009 All HC

N-08 Electricity ombudsman not appellate authority nor tribunal 1 case

Establishes the Electricity Ombudsman's institutional character under s.42(6) as an ADR/quasi-judicial grievance-redressal mechanism, not an Appellate Authority or Tribunal, given the absence of finality (Regulation 12.8's 'any Court or Tribunal' access) and the absence of judicial 'trappings of a Court' — significant for characterising the Ombudsman's role and for procedural questions (appealability,...

LEAD AUTHORITIES *Union of India v. R. Gandhi, President, Madras Bar Association; Shiv Shakti Cooperative Housing Society v. Swaraj Developers*

SCJ_138 · U.P. Power Corporation Limited Thru' E... 2010 All HC

N-09 Licensee must redirect misaddressed appeal to appellate authority 1 case

A plea that the consumer's representation/appeal was not addressed to the proper authority does not justify inaction. The licensee must inform the consumer or re-direct the papers to the Appellate Authority.

SCJ_329 · Gauri Prasad 2026 All HC

N-10 No writ interference with s.127 appellate quantum 1 case

The writ court will not re-examine the quantum of a s.126 assessment that the s.127 appellate authority has considered and reduced; the consumer's remedy is to comply, not to re-litigate the amount in writ.

SCJ_205 · Mahboob Ahmad 2017 All HC

N-11 Section 127(6) interest 16 percent compounded semiannually 1 case

Section 127(6) provides interest at 16% per annum compounded every six months on the assessed amount; interest is a necessary corollary to retention of the amount, neither penal nor confiscatory (Wig Brothers).

LEAD AUTHORITIES *Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors.*

SCJ_1266_S · Hind Industries Limited 2013 All HC

N-12 Vested right of appeal at initiation 1 case

The right of appeal is a substantive right that vests when the original (here, assessment) proceedings are initiated, governed by the law then in force, and is not taken away by a later statute unless expressly or by necessary intendment; a new pre-deposit condition cannot be imposed on such a vested appeal.

LEAD AUTHORITIES *Garikapati Veeraya v. N. Subbiah Choudhry; Ramesh Singh v. Cinta Devi; Shiv Shakti Coop. Housing Society v. Swaraj Developers*

SCJ_008 · Aruna Bhargava 2012 All HC

O. Writ, alternative remedy & public-law doctrines 38 principles · 413 case-applications

Article 226, Whirlpool exceptions, relegation, laches, clean hands, and costs.

O-01 Relegate to statutory remedy 183 cases

Where the statutory appeal under Section 127 against a final assessment is available and has been invoked, the parties are relegated to it (with maintainability/limitation left to the appellate authority) rather than to writ/appellate interference on merits.

SCJ_799_S · S. R. Traders 2010 All HC

SCJ_2047_S · Summer Singh 2019 All HC

SCJ_652 · Mahaver Cement Works Pvt. Ltd. 2009 All HC

SCJ_719 · Nirmal Kumar 2009 All HC

SCJ_726 · Vijay Kumar Sarin 2009 All HC

SCJ_755 · Iqbal Ahmad 2009 All HC

SCJ_763 · Krishna Devi Mishra 2010 All HC

SCJ_778 · Instalments of electricity dues — rele... 2010 All HC

SCJ_789 · Syed Qasim Husain 2010 All HC

SCJ_625 · Hind Industries Ltd. 2010 All HC

173 more

O-02 Final assessment order relegates assessee to section 127 appeal 56 cases

Once a theft case is registered and a final assessment order passed, the writ challenging the assessment is dismissed and the assessee relegated to the Section 127 appeal with all grounds open. Same Section 127 cluster as SCJ-1266, SCJ-047.

- SCJ_882_S · Unreasoned theft assessment set aside ... 2011 [All HC](#) SCJ_908_S · Triloki Mishra 2012 [All HC](#)
SCJ_909_S · Shiv Baboo Yadav @ Ashok Kumar 2012 [All HC](#) SCJ_1765_S · Munna Lal 2018 [All HC](#)
SCJ_2138_S · Mohd. Mubeen Alias Hazi Mohammad Mubeen 2019 [All HC](#)
SCJ_2139_S · Mohd. Mubeen Alias Hazi Mohammad Mubeen 2019 [All HC](#) SCJ_730 · Dhirendra Pratap Singh 2009 [All HC](#)
SCJ_865 · Shri Satguru Metalloys (Pvt.) Ltd. 2011 [All HC](#) SCJ_866 · Avadh Alloys (Pvt.) Ltd. 2011 [All HC](#)
SCJ_867 · Vehlina Steel & Alloys (Pvt.) Ltd. 2011 [All HC](#) 46 more

O-03 Procedural listing no construction 45 cases

A bare procedural listing/adjournment order in a bail application, granted at the applicant's own request, with no reasons recorded and no substantive determination of any kind..

- SCJ_727 · Rakesh Kumar 2009 [All HC](#) SCJ_760 · Ghanshyam Das 2009 [All HC](#) SCJ_767 · Kalpna Khanna 2011 [All HC](#)
SCJ_947 · Torrent Power Ltd. 2012 [All HC](#) SCJ_952 · Ramchander Straw Products Ltd. 2012 [All HC](#)
SCJ_968 · Shakuntala Yadav 2013 [All HC](#) SCJ_1284 · Stay of CGRF order on Tatkal Yojana pe... 2014 [All HC](#)
SCJ_1177 · K.K. Duplex & Paper Mills Pvt. Ltd. 2014 [All HC](#) SCJ_1322 · Kanpur Electricity Supply Company 2015 [All HC](#)
SCJ_1423 · Subhash Chandra Maheshwari 2016 [All HC](#) 35 more

O-04 Writ petition dismissed for want of prosecution on non appearance 32 cases

A bare dismissal-for-want-of-prosecution order in a decade-old writ petition, with no reasons recorded beyond the petitioner's non-appearance..

- SCJ_823 · Suman Lata 2011 [All HC](#) SCJ_832 · Mool Chand Kushwaha 2011 [All HC](#)
SCJ_1046 · Kanpur Electricity Supply Co. Ltd. 2013 [All HC](#) SCJ_956 · Rakesh Kumar 2016 [All HC](#)
SCJ_1544 · Bharti Flour Mills 2016 [All HC](#) SCJ_848 · Sita Ram 2017 [All HC](#)
SCJ_820 · Suyash Craft And Papers Ltd. 2017 [All HC](#) SCJ_1048 · Executive Engineer, Kanpur Electricity... 2018 [All HC](#)
SCJ_817 · Santosh Kumar Sharma 2018 [All HC](#) SCJ_933 · Rajaram Singh @ Ram Swaroop 2018 [All HC](#) 22 more

O-05 Alternative remedy relegation 15 cases

Confirms and applies the alternative-remedy line (cf. SCJ-040 Kapil Gupta): a writ against a Section 126 assessment is entertained only on a genuine jurisdictional/natural-justice/fundamental-rights challenge; where objections have already been considered by the assessing authority and only the correctness of the assessment on facts/procedure is disputed, the petitioner is relegated to the Section 127 appeal, per...

- SCJ_375_S · Chakradhari Cold Storage Pvt. Ltd. 2025 [All HC](#) SCJ_478_S · R.D. Ice & Cold Storage (P) Ltd. 2025 [All HC](#)
SCJ_654 · Abdul Shakoor 2013 [All HC](#) SCJ_636 · Maula Bux 2016 [All HC](#) SCJ_1984 · Imran Ahmad 2018 [All HC](#)
SCJ_384 · Madan Kumar Vishkarma 2025 [All HC](#) SCJ_400 · Akanksha Steels Pvt. Ltd. 2025 [All HC](#)
SCJ_398 · Nagendra Singh Gautam 2025 [All HC](#) SCJ_305 · Saurabh Agarwal 2026 [All HC](#)
SCJ_1980 · Chandrawati Singh 2015 [All HC](#) 5 more

O-06 Writ dismissed as infructuous with liberty to move afresh 14 cases

Although the deposit was made and the petitioner asserted the writ had not become infructuous, the Registry's 'likely to be infructuous' classification drew no objection and the petition was dismissed as infructuous with liberty to move the Court afresh if the cause of action survives — no merits decision.

SCJ_705 · Sushila Upadhyay 2009 AII HC

SCJ_943 · Raj Kumar Didwania 2012 AII HC

SCJ_1975 · Sisco Industries Ltd. 2012 AII HC

SCJ_978 · Shail Upadhyay 2013 AII HC

SCJ_712 · Dugdh Utpadak Sahkari Sangh Ltd. 2015 AII HC

SCJ_822 · Irshad Hussain 2016 AII HC

SCJ_1974 · Arun Kumar Goel 2016 AII HC

SCJ_659 · Mohan Elctro Casting Pvt. Ltd. 2016 AII HC

SCJ_728 · Mehak Metals Pvt. Ltd. 2016 AII HC

SCJ_784 · Baba Cold Storage and Ice Factory 2022 AII HC

4 more

O-07 Contempt of 6.5 writ does not redecide bill 13 cases

On a civil contempt application alleging non-compliance with a writ direction that Purvanchal Vidyut Vitran Nigam Ltd. decide the mill's Clause 6.5 billing objections within seven days, the High Court did not punish contempt..

SCJ_1728 · Salik Ram 2018 AII HC

SCJ_1726 · Satya Flour Mill 2018 AII HC

SCJ_1406 · Shiv Ganga Aata Mill 2016 AII HC

SCJ_1404 · Rajendra Singh Yadav 2016 AII HC

SCJ_819 · Ram Singh 2016 AII HC

SCJ_1569 · Yogesh Kumar Jain 2017 AII HC

SCJ_1727 · Laxmi Oil Mill 2018 AII HC

SCJ_1730 · Ramashrey 2018 AII HC

SCJ_1729 · Bansal Agro Farm 2018 AII HC

SCJ_1941 · Santosh Kumari 2019 AII HC

3 more

O-08 Disputed questions of fact not adjudicable under article 226 8 cases

Whether the purchasers obtained the connection by a false declaration in the vendor's name is a disputed question of fact. Prima facie the sale deed supported the vendor, but the Court held it not prudent to decide the issue in writ jurisdiction.

SCJ_698_S · Raj Kumar 2013 AII HC

SCJ_677 · Amna Khatoun 2010 AII HC

SCJ_634 · Roop Narayan Tripathi 2011 AII HC

SCJ_1981 · AVS Roto Pack Pvt. Ltd. & Another 2016 AII HC

SCJ_667 · Devi Charan Cold Storage Tirwa 2019 AII HC

SCJ_653 · Awadhesh Pratap 2019 AII HC

SCJ_363 · Laxmi Chaurasiya 2025 AII HC

SCJ_240 · Ishwar Chandra 2016 AII HC

O-09 Whirlpool exceptions to alternative remedy bar 6 cases

Interference with a provisional assessment despite the statutory remedy is available only within the Whirlpool exceptions (jurisdictional challenge, vires, natural justice); absent these, the writ is not entertained.

LEAD AUTHORITIES *Executive Engineer v. M/s Sri Seetaram Rice Mill*; *Whirlpool Corporation v. Registrar of Trade Marks, Mumbai*

SCJ_644_S · Mahavir Iron Foundry And Another 2023 AII HC

SCJ_380_S · Satyam Shukla 2025 AII HC

SCJ_112 · Sanjay Rizvi 2012 AII HC

SCJ_163 · Jai Laxmi Cement Company Ltd. 2013 AII HC

SCJ_153 · Mohd. Sagir 2014 AII HC

SCJ_165 · Kamil 2016 AII HC

O-10 Alternate remedy section 127 appeal bars writ 3 cases

A theft-assessment challenge is relegated to the statutory appeal under Section 127 and the Area Level Committee; a writ kept pending for nine years without using that remedy is an abuse of process. Same Section 127 cluster as SCJ-069, SCJ-163.

SCJ_1266_S · Hind Industries Limited 2013 AII HC

SCJ_1538 · Chotu Service And Washing Center 2016 AII HC

SCJ_2016 · Vijay Kumar 2019 AII HC

O-11 Approbate and reprobate bars selective repudiation 3 cases

A consumer cannot both contest liability before the CGRF and seek a mandamus to pay and restore; the inconsistent, simultaneous pursuit of two remedies for the same cause is not permitted.

LEAD AUTHORITIES *R.N. Gosain v. Yashpal Dhir*

SCJ_302 · Spencer Retail Limited 2026 AII HC

SCJ_181 · Amrita Arya 2018 AII HC

SCJ_098 · Palika Towns LLP 2022 AII HC

O-12 Alternative remedy not a bar after long pendency 2 cases

A writ entertained with completed pleadings, an interim order and years of pendency should be decided on merits rather than dismissed for the statutory appeal; the alternative-remedy bar is self-imposed discipline, not a jurisdictional bar.

LEAD AUTHORITIES *Durga Enterprises (P) Ltd. v. Principal Secretary, Govt. of U.P.*; *Roshan Lal v. State of U.P.*

SCJ_406 · Managing Director, D.V.V. Nigam Ltd. &... 2025 AII HC

SCJ_164 · Parmarth Steels & Alloys (Pvt.) Ltd. &... 2013 AII HC

O-13 Clean hands required material concealment bars writ 2 cases

Suppression of a material fact — here an adverse civil-court finding on the petitioner's tenancy relevant to the connection claim — disentitles the petitioner to discretionary writ relief.

SCJ_633 · Anil Shastri 2011 AII HC

SCJ_171 · Vandana Srivastava 2017 AII HC

O-14 Empty listing order 2 cases

Not a substantive Supply Code case — a bare interlocutory listing order in a criminal bail application, merely recording that a counter affidavit was taken on record and adjourning the matter. No electricity-related holding, reasoning, or authority appears in the order.

SCJ_078 · Mahendra Pratap Singh 2011 AII HC

SCJ_107 · Rajesh & Others 2014 AII HC

O-15 Own wrong maxim 2 cases

Applied against a distribution licensee: the procedural prerequisite (amending the agreement) is deemed waived within a reasonable time of the consumer's request.

LEAD AUTHORITIES *M.K. Shah Engineers & Contractors v. State of M.P.*; *Kusheshwar Prasad Singh v. State of Bihar*; *Mrutunjay Pani v. Narmada Bala Sasmal*

SCJ_406 · Managing Director, D.V.V. Nigam Ltd. &... 2025 AII HC

SCJ_001 · Indian Oil Corporation Ltd. 2024 AII HC

O-16 Waiver requires full knowledge of right 2 cases

A consumer not informed of the Clause 5.6(c)(iii) option cannot be deemed to have waived it; waiver is an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law.

LEAD AUTHORITIES *Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.*; *M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.*

SCJ_162 · Amrawati Devi 2009 AII HC

SCJ_153 · Mohd. Sagir 2014 AII HC

O-17 Want of prosecution dismissal vacates interim stay 2 cases

On 2.8.2024 the writ was dismissed as infructuous for want of prosecution and the interim order stood vacated; the same posture as SCJ-1565, though here the dismissal was subsequently recalled and the interim protection revived on restoration.

SCJ_1975 · Sisco Industries Ltd. 2012 AII HC

SCJ_1565 · Paschimanchal Vidyut Vitran Nigam Ltd.... 2023 AII HC

O-18 Writ interference declined no case made out and infructuous 2 cases

A writ court declines to interfere with an electricity demand notice, and dismisses the petition vacating any interim order, where on a perusal of the pleadings no case for interference is made out and the cause of action no longer survives / the matter has become infructuous.

SCJ_1381 · Indian Industries Association 2017 **All HC**

SCJ_1985 · Shareef Ahmad 2017 **All HC**

O-19 Writ will not adjudicate bill if undisputed part unpaid 2 cases

A surcharge / Clause 6.5(b)(i) grievance will not be examined in writ if the consumer refuses to deposit the billed amount less the disputed surcharge, as previously directed.

SCJ_653 · Awadhesh Pratap 2019 **All HC**

SCJ_281 · Parvati Devi 2026 **All HC**

O-20 Alternate remedy and laches bar writ 1 case

Availability of a statutory appeal to the AAIFR under Section 25 SICA and a four-to-five-year delay were each a sufficient ground to decline writ jurisdiction.

SCJ_1061 · U.P. Power Corporation Ltd. 2019 **All HC**

O-21 Alternative remedy efficacious absent onerous predeposit 1 case

The onerous-deposit / limitation exceptions (J.M. Baxi, Shantilal & Co.) do not apply where the statutory forum requires no deposit of the whole demand (only 50% for interim relief) and the demand is not time-barred; the consumer is relegated to the forum. Same relegation-of-a-billing-dispute line as SCJ-636 and SCJ-1561.

LEAD AUTHORITIES *J.M. Baxi & Co. v. Commissioner of Customs, New Kandla*

SCJ_1562_S · Shree Gopala Iron (India) Ltd. & Anr. 2012 **All HC**

O-22 Clause 6.15 two year limitation relegated to authority 1 case

On review, by consent, the petitioner was given liberty to make a representation to respondent no.1 raising only the Clause 6.15 plea that arrears older than two years cannot be recovered; the writ court did not itself decide the limitation question.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 **All HC**

O-23 Contempt compliance 1 case

Civil contempt of a writ order directing a representation under Section 615 of the Electricity Supply Code, 2005 (on deposit of Rs 1,50,000) and restoration of supply was dismissed, the Court being satisfied from the licensee's compliance affidavit that the complaint had been decided on 11 March 2018.

SCJ_1731 · Jai Vaishno Rice Mill 2022 **All HC**

O-24 Contempt compliance with a direction to dispose of a new connection appl 1 case

A civil contempt application alleging non-compliance with a writ order directing the electricity authority to dispose of the applicant's new-connection application after hearing an objector was dismissed on a finding of compliance..

SCJ_1570 · Tulsi Castle 2023 **All HC**

O-25 Contempt of connection direction dues on brother s connection on same la 1 case

Contempt of a writ directing an electricity connection within four weeks is not made out where the licensee's later speaking order refuses the connection under Supply Code paragraphs 4(i) and 4(ii) (dues on the applicant's brother's connection on the same land); the writ-court concession was only to give connection in...

SCJ_337 · S.K. Rice Mill 2025 All HC

O-26 Delay laches bar similarly situated claim 1 case

Delay/laches of decades bars a consumer from claiming the benefit of a favourable judgment obtained by other, timely litigants on the same point.

LEAD AUTHORITIES *New Delhi Municipal Council v. Pan Singh & Others*; *Yunus v. State of Maharashtra & Others*

SCJ_068 · Three Star Paper Mills Pvt. Ltd. 2018 All HC

O-27 Disputed surcharge impounded in interest bearing account pending writ 1 case

Pending decision, disputed protective-load surcharge is kept by the licensee in a separate interest-bearing account to abide by the result of the writ petition.

SCJ_1988 · Ranjeeta Cold Storage & Ice Plant 2016 All HC

O-28 Long pending writ consigned to record no cause of action survives 1 case

A years-old writ on the 'Oldest Pending Cases in this High Court for Priority Hearing' warning list, with none appearing for the petitioner on a revised call and no surviving cause of action on the record, is consigned to record and disposed of, with liberty to seek recall/variation/modification.

SCJ_2190 · Ganga Dairy 2025 All HC

O-29 No relief to litigant without clean hands 1 case

A petitioner who withholds material facts and obtains an interim order by painting a false picture is not entitled to discretionary relief.

SCJ_225_S · Raman Ispat (Pvt.) Ltd. & Anr. 2009 All HC

O-30 No writ at calculation sheet stage raise objection before ee 1 case

A writ at the proposed-assessment / calculation-sheet stage is not entertained; the consumer is relegated to file objection before the Executive Engineer, the calculation sheet being only a call for his response. Same objection-stage / relegation line as SCJ-1270, SCJ-1271, SCJ-032.

SCJ_1566 · Krishna Kumar Sharma 2018 All HC

O-31 State instrumentality frivolous litigation costs 1 case

A State-owned licensee filing a meritless writ against its own correct billing determination is liable to costs, recoverable from the officials responsible for advising the filing.

SCJ_261 · Kanpur Electricity Supply Co. Ltd. and... 2011 All HC

O-32 Statutory forum cannot relegate to arbitration 1 case

A statutory consumer grievance forum (CGRF/Ombudsman) must decide the consumer's dispute on merits and cannot abdicate by relegating the parties to an arbitration clause; the statutory remedy is additional, by right of election, not ousted by the agreement.

LEAD AUTHORITIES *Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd.*

SCJ_026 · Executive Engineer, Electricity Urban ... 2014 All HC

O-33 Third exception writ jurisdictional review on merits 1 case

Where full arguments on the underlying theft assessment have already been made and the 'without jurisdiction' exception is invoked, the Court may examine the record on merits (checking report, MRI report) to see if the assessment is patently illegal, rather than mechanically relegating to the s.127 appeal; physical/MRI indicators of direct extraction, even without a red-handed catch, satisfy Ashok Kumar's...

LEAD AUTHORITIES *Ashok Kumar & Others v. State of U.P. & Others*

SCJ_051 · Beeco Electrical India & Anr. 2012 All HC

O-34 Voluntary payment forecloses coercion plea 1 case

A compounding/assessment amount paid without protest or contemporaneous objection cannot later be assailed as realised under coercion.

SCJ_003 · Abhinav Seva Sansthan Mahavidyalaya 2011 All HC

O-35 Voluntary payment under undertaking not refundable absent express direction 1 case

A consumer who voluntarily pays disputed dues as a condition for obtaining a benefit (here, a fresh connection), pursuant to its own undertaking, cannot later claim a refund based on a subsequent regulatory order that merely restrains future demands, absent an express refund direction — the payment remains refundable only per the terms of the original undertaking.

SCJ_099 · Paschimanchal Vidyut Vitran Nigam Ltd.... 2008 SC

O-36 Writ court defers to supply code adjudicatory mechanism 1 case

Reinforces that challenges to Supply Code assessments should ordinarily proceed through the Code's own adjudicatory mechanism rather than direct writ adjudication on the merits, with interim reconnection conditioned on partial deposit — a recurring pattern in this corpus's disconnection/reconnection interim-relief cluster.

SCJ_143 · Vimal Gupta 2017 All HC

O-37 Writ dismissed in default and for want of prosecution 1 case

A writ petition is dismissed in default and for want of prosecution where, a counter affidavit having long been on record, no rejoinder is filed and no one appears to press the petition; any interim order stands discharged.

SCJ_1989 · Madan Mohan Saxena 2018 All HC

O-38 Writ withdrawal departmental remedy 1 case

On counsel's request after the matter was heard, the Division Bench dismissed the writ as withdrawn, with liberty to the petitioner to pursue any departmental remedy available under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. The Court did not examine the merits of the supply dispute.

SCJ_1659 · Veeri Singh 2017 All HC

P. Criminal process, compounding & s.482 18 principles · 171 case-applications

Arrest safeguards, FIR, compounding, summoning, and inherent-power quashing.

P-01 S.135 arrest safeguards and compounding remedy 148 cases

Applied after refusing to quash: no arrest yet, so CrPC 41(1)(b)/41-A binds any future arrest for a sub-7-year s.135 offence; compounding is a Supply Code 2005 remedy, not a ground to quash.

SCJ_722_S · Vijaybir Singh 2009 AII HC

SCJ_766_S · Dinesh Sharma 2010 AII HC

SCJ_908_S · Triloki Mishra 2012 AII HC

SCJ_909_S · Shiv Baboo Yadav @ Ashok Kumar 2012 AII HC

SCJ_1250_S · Rakesh Sharma 2014 AII HC

SCJ_1251_S · Rajesh Sharma 2014 AII HC

SCJ_1650_S · Ajay Prakash Srivastava 2017 AII HC

SCJ_1769_S · Bhure Khan @ Mohd. Jahangeer 2018 AII HC

SCJ_651_S · Paschimanchal Vidyut Vitran Nigam Ltd. 2018 AII HC

SCJ_1837_S · Mohd. Usman 2018 AII HC

138 more

P-02 Section 482 sparingly at pre trial stage 4 cases

The inherent power under s.482 Cr.P.C. is used sparingly and not to appreciate evidence or test the genuineness of allegations at the pre-trial/summoning stage; where a prima facie offence is disclosed, the proceedings are not quashed.

LEAD AUTHORITIES *State of Haryana v. Bhajan Lal*; *M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra*; *R.P. Kapur v. State of Punjab*

SCJ_665_S · Ashok Garg 2017 AII HC

SCJ_539 · Syed Avesh Ahmad 2024 AII HC

SCJ_343 · Natthi Prasad 2025 AII HC

SCJ_173 · Shailendra Kumar 2019 AII HC

P-03 Compounding fee does not extinguish civil consumption dues 2 cases

Payment of a s.152(3) compounding fee for theft is distinct from, and does not extinguish, the consumer's separate civil liability for electricity actually consumed; recovery notices for consumption dues survive compounding — a companion principle to this corpus's theft/126 procedural-strictness line, clarifying that compounding addresses only the criminal offence.

SCJ_095 · Om Prakash s/o Gauri Shankar 2006 AII HC

SCJ_208 · Om Prakash 2006 AII HC

P-04 Consumer forum lacks jurisdiction over s.126 s.135 140 matters 2 cases

Landmark bar on Consumer Protection Act jurisdiction over Electricity Act s.126 assessment and s.135-140 theft/interference offences, distinguishing 'saving' of the CP Act's general applicability (ss.173-175) from an affirmative grant of jurisdiction over matters outside the CP Act's own 'complaint' definition — a foundational precedent for this corpus's forum-jurisdiction cluster, complementing SCJ-138's...

LEAD AUTHORITIES *U.P. Power Corporation Ltd. vs. Anis Ahmad*

SCJ_406 · Managing Director, D.V.V. Nigam Ltd. &... 2025 AII HC

SCJ_139 · U.P. Power Corporation Ltd. & Ors. 2013 SC

P-05 First due on billing not consumption 2 cases

Electricity charges become 'first due' when the bill is issued quantifying them, though liability to pay arises on consumption; the limitation clock under s.56(2) starts from billing.

SCJ_477_S · Executive Engineer, Dakshinanchal Vidy... 2025 AII HC

SCJ_009 · Assistant Engineer (D1), Ajmer Vidyut ... 2020 SC

P-06 Criminal acquittal does not extinguish electricity assessment 1 case

Acquittal in the criminal theft case does not make the assessment order not survive; acquittal may rest on grounds unrelated to the assessment, and the assessment of charges on account of theft is provided under the Act.

SCJ_1266_S · Hind Industries Limited 2013 All HC

P-07 Criminal bail s.376 1 case

OFF-TOPIC (mis-indexed in this corpus): a criminal bail application under Section 376 IPC with no electricity-law content. The applicant was accused of rape of a two-year-old child (FIR under s.376 IPC, P.S. Saroorpur, Meerut)..

SCJ_233 · Rishipal 2005 All HC

P-08 Criminal interim 1 case

An interlocutory order in a petition under Section 482 Cr.P.C., on the contention that a complaint-case was proceeded with without the enquiry under Section 202(1) Cr.P.C. (the accused and the complainant being in different districts)..

SCJ_024 · Vinod Kumar Bassi 2014 All HC

P-09 Dowry death criminal appeal 1 case

Not a Supply Code case — a dowry-death criminal appeal under IPC ss.498-A/304-B and Dowry Prohibition Act ss.3/4, turning on whether the 'soon before her death' cruelty standard for s.304-B was satisfied. No electricity-related content appears anywhere in the judgment.

SCJ_079 · Maniram 2014 All HC

P-10 S.126 theft overlap requires quasi criminal procedural rigour 1 case

Because s.126 assessment often shares its factual predicate with s.135 theft and carries comparable reputational/character consequences, the same procedural rigour and honest fact-recording expected in quasi-criminal proceedings must govern s.126 assessments.

SCJ_126 · Vimla Tiwari 2012 All HC

P-11 S.135 1 clauses are definitional not separate offences 1 case

s.135(1)(a)–(e) define theft and share one punishment; omitting the sub-clause from the FIR/charge-sheet/cognizance is not fatal if the narration is complete.

SCJ_278 · Satish Kumar Bharti alias Chhotu 2026 All HC

P-12 S.135 1A 24 hour FIR is mandatory 1 case

The 24-hour police-complaint rule in s.135(1-A) second proviso, reinforced by Clause 8.2 of the Code and s.57 consequences, is mandatory; a theft FIR lodged four days after inspection vitiates the criminal case. Indresh Patel (DB, directory) is treated as per incuriam; Varun Kumar Yadav (coordinate Bench; SLP pending) is followed.

LEAD AUTHORITIES *Varun Kumar Yadav v. State of U.P. & Others; Indresh Patel @ Indreshwar Singh v. State of U.P. & 4 Others; Dr. Arun Kumar v. Nagar Nigam, Bareilly*

SCJ_278 · Satish Kumar Bharti alias Chhotu 2026 All HC

P-13 S.135 2 authorised officer competent to lodge fir 1 case

An officer of a distribution licensee authorised under s.135(2) is competent to lodge an FIR for theft of electricity under s.135(1); this authority is not displaced by unproven allegations of mala fide timing.

LEAD AUTHORITIES *State of Haryana v. Bhajan Lal*

SCJ_102 · Pawan Kumar Laur 2011 **All HC**

P-14 S.135 summoning need not examine mens rea 1 case

At the Section 204 CrPC stage, a court summoning under ss.135/138 need not examine whether the act was dishonest. Section 39 of the repealed 1910 Act and Ram Chandra Prasad Sharma do not apply. Intention, if it emerges, is for trial.

SCJ_637_S · Joginder Singh 2010 **All HC**

P-15 S.138 reconnection offence distinct from billing dispute 1 case

Prosecution for unauthorised reconnection under s.138 is independent of any billing/arrears dispute under Chapter 6 of the Code; a favourable consumer-forum order on a bill does not bar the s.138 prosecution.

SCJ_173 · Shailendra Kumar 2019 **All HC**

P-16 S.141 director liability summoning stage not for quashing 1 case

Company-director liability under s.141 NI Act (whether the accused was 'in charge of and responsible for' the company's business) is ordinarily determined at trial; sufficient prima facie averments in the complaint preclude quashing at the summoning stage.

LEAD AUTHORITIES *Sunil Bharati Mittal v. CBI; SMS Pharmaceuticals Ltd. v. Neeta Bhalla*

SCJ_132 · Sunil Todi & Ors. 2021 **SC**

P-17 S.151 does not exclude fir and charge sheet 1 case

Unamended section 151's complaint route does not exclude FIR, investigation or a police charge-sheet for section 135. Following Vishal Agrawal, Cr.P.C. procedure governs; a charge-sheet for theft of electricity is competent.

LEAD AUTHORITIES *Vishal Agrawal v. Chhattisgarh State Electricity Board*

SCJ_665_S · Ashok Garg 2017 **All HC**

P-18 Sum first due means when bill actually raised 1 case

For limitation purposes, an electricity charge/penalty 'first becomes due' only when a bill/demand is actually raised (and unpaid), not from the date of the underlying default/violation — a licensee's delayed billing (for legitimate reasons, e.g. awaiting correction of an earlier erroneous waiver) does not by itself extinguish recovery rights.

LEAD AUTHORITIES *MCD v. H.D. Shourie; NDMC v. Karam Chandra Thapar & Brothers Pvt. Ltd.*

SCJ_122 · Shyam Ferrous Ltd. Gopal Nagar 2015 **All HC**

Q. Adjacent & miscellaneous 93 principles · 109 case-applications

Doctrines that sit beside the Code: arbitration, departmental inquiry, and residual.

Q-01 Clause 4.14g paid final bill bars further demand 3 cases

A 2016 receipt stamped 'P.D. Final Amount' for Rs 1,696, undenied and consistent with the licensee's admission that records are missing, is treated as Clause 4.14(g) termination and no-dues. A 2025 demand of Rs 1,66,916 on that connection is quashed; missing records cannot revive billing.

SCJ_1002_S · Kamlesh Sisodiya 2013 AII HC

SCJ_328_S · Ghanshyam 2026 AII HC

SCJ_642 · DLF Universal Limited 2019 AII HC

Q-02 Licensee demand on paid bills requires shown provision 3 cases

After due discharge of bills, a later demand on alleged licensee mistake is confined to Section 56 as read in Rahamatullah Khan: additional demand may be raised, disconnection may not, and the demand cannot be progressively increased. The licensee must particularise the mistake and calculation, then sue if unpaid.

LEAD AUTHORITIES *Assistant Engineer, Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan alias Rahamjulla*

SCJ_283_S · Om Food Manufacturing Center 2026 AII HC

SCJ_328_S · Ghanshyam 2026 AII HC

SCJ_284 · Krishna Kant Dubey 2026 AII HC

Q-03 Natural justice in departmental inquiry 3 cases

In a major-penalty inquiry charges are not self-proving. The establishment must lead documentary and oral evidence through a Presenting Officer before an impartial inquiry committee; want of named witnesses in the charge-sheet, or a plea that documents were not disputed as to genuineness, does not relieve that burden when the delinquent has denied the charges.

LEAD AUTHORITIES *State of Uttar Pradesh v. Saroj Kumar Sinha; Roop Singh Negi v. Punjab National Bank; State of Uttaranchal v. Kharak Singh*

SCJ_548 · Umesh Chandra Verma 2024 AII HC

SCJ_549 · Tarun Kumar Pathak 2024 AII HC

SCJ_017 · Dharendra Kumar Chaudhary 2024 AII HC

Q-04 Audi alteram partem for demand assessment orders 2 cases

A demand/assessment order must confront the consumer with adverse material, allow objections, and be a reasoned speaking order after a hearing; a pre-printed proforma order passed in disregard of these requirements (and of prior court directions to that effect) is vitiated for breach of natural justice.

LEAD AUTHORITIES *Uma Nath Pandey & Ors. v. State of U.P. & Anr.*

SCJ_552_S · Prakash Chandra Gupta 2024 AII HC

SCJ_092 · Navi Hasan 2022 AII HC

Q-05 Damages for licensee delay under para 7 7 2 2 cases

Concurrent DCGRF and Electricity Ombudsman findings of delay and laches justify damages under paragraph 7.7.2 of the Supply Code, 2005; Article 226 interference is refused absent an error apparent on the record. Same paragraph 7.7 cluster as SCJ-261 and SCJ-700.

SCJ_1265_S · Kanpur Electricity Supply Company Ltd.... 2011 AII HC

SCJ_773 · Silvertown Paper Ltd. 2010 AII HC

Q-06 Electricity dues not automatically a secured interest 2 cases

Electricity dues are not automatically a 'secured interest'/first charge under the IBC merely by virtue of a Supply Code recovery-as-arrears-of-land-revenue mechanism; secured-creditor status depends on whether a security interest was actually created (by contract clause or operation of law) and, if so, the claim is processed within the s.53 waterfall, not outside/above the IBC.

LEAD AUTHORITIES *State Tax Officer v. Rainbow Papers Ltd.; Textile Labour Association v. Official Liquidator*

SCJ_100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 SC

SCJ_152 · U.P. State Cement Corporation Ltd. (In... 2007 AII HC

Q-07 Hazardous activity strict duty 2 cases

Electricity distribution is a hazardous activity; the licensee is under a statutory duty to maintain its installations and lines so that passers-by (human or animal) are not harmed.

LEAD AUTHORITIES *Shakuntala Devi v. Delhi Electric Supply Undertaking*

SCJ_025 · Executive Engineer, Electricity Distri... 2018 All HC

SCJ_019 · Divisional Engineer, Electricity Distr... 2018 All HC

Q-08 Individual grievance via s.42 not commission 2 cases

A State Electricity Regulatory Commission cannot adjudicate individual consumers' billing grievances or issue a blanket refund direction without a proper s.128 investigation; individual grievances go through the s.42(5) Forum and s.42(6) Ombudsman.

SCJ_1594 · Obedue Rahaman Khan 2017 All HC

SCJ_076 · Maharashtra Electricity Regulatory Com... 2007 SC

Q-09 Law as of application date governs 2 cases

Pending energy writ: counter in four weeks, rejoinder in two weeks, list after six weeks. Petitioner may meanwhile apply under cl. 4.45 of the U.P. Electricity Supply Code, 2005, to be considered as per law if possible before the next date.

SCJ_246_S · L.M.L. Ltd. 2009 All HC

SCJ_514 · Rinku Verma 2025 All HC

Q-10 Mandamus cannot override statutory distribution scheme 2 cases

A writ of mandamus or an Article 142 direction to supply/continue supply cannot displace the substantive priority scheme of ss.529, 529-A and 530; residuary powers are supplementary, not a means to ignore statute.

LEAD AUTHORITIES *Textile Labour Association v. Official Liquidator*; *Supreme Court Bar Association v. Union of India*

SCJ_355_S · Mohammad Afsar Khan And Another 2025 All HC

SCJ_152 · U.P. State Cement Corporation Ltd. (In... 2007 All HC

Q-11 Owner consent precondition clause 4.15vi bihar code 2 cases

Clause 4.15(vi) of the Bihar Supply Code makes the owner liable for a tenant's arrears only where the connection was given with the owner's consent; without proof of consent the clause cannot be invoked to deny a fresh connection.

SCJ_268 · Vijay Lakshmi 2013 HC

SCJ_269 · Ujala Kumar @ Ujala Singh 2014 HC

Q-12 Right to electricity art21 2 cases

Supply of electricity is necessary for a life with dignity; disconnection for reasons not authorised by the Act/Code, for malafide purposes, violates Article 21.

SCJ_016 · Devendra Sharma 2011 All HC

SCJ_020 · Divya Sahani 2021 All HC

Q-13 Set aside assessment is non est fresh reasoned order required 2 cases

An assessment quashed by the writ court is non est; on remand the authority must pass a fresh reasoned/speaking order dealing with the objection, and cannot merely reaffirm or treat the quashed order as alive.

LEAD AUTHORITIES *Ashok Kumar v. State of U.P.*

SCJ_351_S · S. Milan Agro Industries & 2 Others 2025 All HC

SCJ_154 · Arup Kumar Mitra 2014 All HC

Q-14 Acquiescence cuts both ways 1 case

Bars the consumer's refund of charges paid without demur and the licensee that only raised bills, never pursuing statutory recovery (s.52 noted).

SCJ_001 · Indian Oil Corporation Ltd. 2024 All HC

Q-15 Amendment allowed does not mean prayer allowed 1 case

Allowing the amendment application that introduced the Clause 6.15 limitation ground did not amount to allowing the prayer; the limitation merits were left to be raised before the authority.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

Q-16 Anticipatory bail electricity official fraud prosecution 1 case

Not a Supply Code merits case — an anticipatory bail order under s.438 Cr.P.C. granted to a public-servant electricity official (an Executive Engineer/Assistant Engineer-level officer who had ordered permanent disconnection of a tubewell electricity connection) facing prosecution under IPC ss.420/467/468/471/120B

SCJ_131 · Sunil Kumar 2024 All HC

Q-17 Aptel jurisdiction over cerc regulations 1 case

Not a Supply Code case — a Constitution Bench ruling on the architecture of the Electricity Act

SCJ_106 · PTC India Ltd. 2010 SC

Q-18 Assessment withdrawal with liberty statutory remedy 1 case

A writ on electricity assessment was dismissed as withdrawn at counsel's request. The petitioner was directed first to obtain necessary documents from the Executive Engineer and, if still aggrieved, to avail remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005..

SCJ_1680 · Mohd. Naeem 2017 All HC

Q-19 Cauvery interstate water dispute 1 case

Not an electricity case — the landmark Cauvery river inter-State water dispute judgment, adjudicating the appeals from the Cauvery Water Disputes Tribunal's final award under the Inter-State River Water Disputes Act, 1956 and Article 262 of the Constitution, addressing groundwater apportionment

SCJ_135 · The State of Karnataka 2018 SC

Q-20 Charge follows actual use 1 case

Liability for system-upgradation (the system-loading charge) accrues only on actual consumption; a prospective consumer who never draws supply bears no share of it.

SCJ_002 · Suman Engineering and Chemicals Pvt. L... 2023 All HC

Q-21 Charge requires consumer option 1 case

A tariff charge conditioned on the consumer opting for a facility (here, protective load) cannot be levied absent that option and the licensee's sanction; it cannot be imposed suo motu on an audit objection.

SCJ_026 · Executive Engineer, Electricity Urban ... 2014 All HC

Q-22 Clause 6.12 governs bill payment appropriation not duty refund 1 case

Clause 6.12's order of application applies to appropriating a consumer's bill payment, not to adjusting duty/amounts already realised from the consumer.

SCJ_204 · Shri Radhey Iron (Pvt.) Ltd. 2013 All HC

Q-23 Code confined to licensee consumer service obligations 1 case

Clause 2.2(av) of the 2002 Code, and a Division Bench citation of 2009 (2) AWC 1189, cannot be used to defeat summoning under ss.135/138. The Code details licensee-consumer service obligations and has no relevance to the criminal prosecution.

SCJ_637_S · Joginder Singh 2010 All HC

Q-24 Compensation for accidents caused by a licensee s negligence 1 case

A writ petition contending that no statutory provision exists in Uttar Pradesh for payment of compensation where injury or death is caused by the negligent act of a licensee under the Electricity Act, 2003 read with the U.P..

SCJ_1568 · Parmeshwar Prasad 2016 All HC

Q-25 Consumer cannot blame licensee for consequences of own delay 1 case

A disconnection following the consumer's own delay in invoking the Clause 6.5 remedy is attributable to him, not the licensee.

SCJ_253 · Mohammad Khalid 2014 All HC

Q-26 Correction of electricity bill 1 case

Where the consumer had already obtained an endorsement from the Executive Engineer to correct an electricity bill, the Allahabad High Court disposed of the writ by directing that the bill be corrected in accordance with the Electricity Supply Code, 2005 within one month of production of the certified copy.

SCJ_790 · Incorrect electricity bill directed to... 2010 All HC

Q-27 Cost on electricity department for casual non compliance 1 case

Rs.2,00,000 cost was imposed on the Electricity Department, deprecating its 'callous, indifferent and casual attitude' in not filing a counter affidavit despite a peremptory order, the amount remitted to the Advocate Association for lawyer welfare and the Executive Engineer directed to appear in person.

SCJ_1976 · Capital Polymers Industries (P) Ltd. 2018 All HC

Q-28 Cost on frivolous state instrumentality litigation 1 case

A State instrumentality challenging a modest consumer-protection award for its own default, without any error apparent on the record, prosecutes frivolous and vexatious litigation liable to be dismissed with cost; departmental action against the defaulting officials is the proper course.

SCJ_1265_S · Kanpur Electricity Supply Company Ltd.... 2011 All HC

Q-29 Cross subsidisation of franchisee input rate not per se unlawful 1 case

Cross-subsidisation of a franchisee's below-bulk-supply input rate by a licensee's other-area consumers is a legitimate feature of input-based franchisee models addressing high-loss areas, and is not by itself a ground to invalidate the arrangement absent evidence of illegality or misrepresentation.

SCJ_136 · Torrent Power Limited 2025 SC

Q-30 Cross subsidy surcharge sez deemed licensee 1 case

Not a Supply Code case in substance — a Supreme Court ruling on Cross Subsidy Surcharge (CSS), open access, and the interplay between the Special Economic Zone Act, 2005 and Section 14(b) of the Electricity Act, 2003 (deemed distribution licensee status for an SEZ developer)..

SCJ_074 · Sesa Sterlite Ltd. 2014 **SC**

Q-31 Discom unbundling employee pension liability 1 case

Not a Supply Code case — a dispute between successor DISCOMs (North Delhi Power Ltd..

SCJ_093 · North Delhi Power Ltd. 2010 **SC**

Q-32 Disproportionate assets quashing electricity employee 1 case

Not a Supply Code case — a s.482 Cr.P.C. quashing application by a retired electricity department Junior Engineer against a Prevention of Corruption Act disproportionate-assets charge sheet, applying the settled R.P. Kapur/Bhajan Lal/P.P..

SCJ_142 · Vijay Kumar Sachan 2018 **All HC**

Q-33 Distribution licensing minimum area 1 case

Not a Supply Code case in substance — this is a landmark ruling on the DISTRIBUTION-LICENSING scheme under Sections 9, 10, 14, 15, 19 and 42(2) of the Electricity Act, 2003 (grant/cancellation of a distribution licence to a captive-power-plant owner supplying a private industrial estate

SCJ_056 · Jindal Steel & Power Ltd. 2022 **SC**

Q-34 Dowry death bail application 1 case

Not a Supply Code case — a bail application in a dowry-death case under IPC ss.304-B/498-A read with Dowry Prohibition Act ss.3/4, granted on the ground that the co-accused (applicant's sister-in-law) had already been enlarged on bail and only general dowry-demand allegations were made against the applicant..

SCJ_088 · Mukesh Kumar 2017 **All HC**

Q-35 Electricity board employee public servant status 1 case

Not a Supply Code case — a criminal appeal against prosecution of a Madhya Pradesh Electricity Board civil engineer under the Prevention of Corruption Act, 1988 for allegedly taking illegal gratification for grant of an electrical connection..

SCJ_091 · Naresh Kumar Madan 2007 **SC**

Q-36 Electricity dues contractual not charge on premises 1 case

A defaulting consumer could not shift its liability to the auction-purchaser via a sale deed it was not party to; dues are enforced under the supply contract and a transferee cannot be foisted with a predecessor's dues absent a contract to the contrary.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.*

SCJ_1062 · Rajee Steels Pvt. Ltd. & Anr. 2016 **All HC**

Q-37 Electricity dues statutory character clearance condition not unreasonable 1 case

Electricity dues are statutory, not purely contractual; insisting on clearance of a premises' arrears as a condition of a fresh connection is not arbitrary or unreasonable.

LEAD AUTHORITIES *Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys (P) Ltd.; Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board*

SCJ_271 · RKG Industries LLP 2023 All HC

Q-38 Electricity duty taxation 1 case

Not a Supply Code case in substance — a large batch of writ petitions challenging the U.P..

SCJ_062 · Pashupati Castings Ltd. & Ors. 2014 All HC

Q-39 Excess duty realised must be adjusted against current bill 1 case

Electricity duty realised during an exemption period is an excess recovery that must be adjusted against the consumer's current bill; the licensee cannot defer the adjustment or disconnect for a bill covered by the amount already held.

SCJ_204 · Shri Radhey Iron (Pvt.) Ltd. 2013 All HC

Q-40 Exorbitant assessment makes appeal remedy onerous 1 case

The plea that an exorbitant re-assessment renders the statutory appeal onerous (50% pre-deposit) was held to need consideration; the writ was entertained and not thrown out at the interim stage on the alternative-remedy ground, though the respondents contended that an appeal lies.

SCJ_1564 · Nandu Engineering Works & Anr. 2012 All HC

Q-41 Family pension dispute 1 case

Not a Supply Code case — a family-pension dispute between a first and second wife of a deceased municipal employee under the U.P..

SCJ_080 · Manno Singh 2014 All HC

Q-42 Franchisee is agent of licensee not directly regulable 1 case

Establishes that a distribution franchisee under s.2(27)/seventh proviso to s.14 is the licensee's agent, insulated from direct ERC regulatory oversight; an ERC's s.128 investigation power reaches only the licensee, requiring a concrete showing of licence/Act non-compliance rather than a bare performance review — a significant precedent for this corpus's regulatory-architecture cluster (alongside SCJ-130's...

LEAD AUTHORITIES *City Corporation Limited v. Maharashtra Electricity Regulatory Commission and Anr.*

SCJ_136 · Torrent Power Limited 2025 SC

Q-43 Fresh application after code compliance 1 case

On the petitioner not pressing the writ, the Allahabad High Court disposed of the petition with liberty to approach the concerned authority afresh after complying with Clauses 4.2 and 4.3 of the Electricity Supply Code, 2005

SCJ_1633 · Ishwari Prasad 2017 All HC

Q-44 Fresh recovery arbitrary while representation pending 1 case

Issuing a fresh demand / recovery notice while a Clause 6.5 representation remains undecided is arbitrary; the representation must be decided first and recovery kept in abeyance.

SCJ_254 · Chandrapal 2014 All HC

Q-45 Gift deed does not wipe electricity dues application processed after cle 1 case

A donee under a gift deed from her father sought quashing of the licensee's 28.04.2025 order and a mandamus for a fresh connection without paying remaining electricity dues on the house. Held, mere execution of a gift deed does not exclude liability for those dues..

SCJ_444 · Kirti Kushwaha 2025 All HC

Q-46 Government servant suspension electric line project 1 case

Not primarily a Supply Code case — a service-law dispute over the suspension of a Development Authority Superintending Engineer pending disciplinary inquiry into alleged financial irregularities in a project to shift a 33 KV electric line (payment of supervision/centage charges and a construction contract)..

SCJ_116 · Shabih Haider 2017 All HC

Q-47 Government shareholding does not make licensee dues government dues 1 case

A distribution licensee's dues do not automatically rank as 'government dues' under s.53(1)(e)/(f) IBC merely because of state shareholding in the licensee; the licensee remains a distinct juristic entity in a liberalised, privately-contestable sector.

LEAD AUTHORITIES *Municipal Commissioner of Dum Dum Municipality v. Indian Tourism Development Corporation*

SCJ_100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 SC

Q-48 High court non bailable warrant must be executed 1 case

A High Court non-bailable warrant must be executed; a Chief Judicial Magistrate cannot act on the assurance of the person named and return it unexecuted.

SCJ_1987_S · Anmol Laghu Udyog 2016 All HC

Q-49 Independent lab testing only if conclusion rests on test report 1 case

Clause 5.6(c)(iii)'s independent-laboratory option is triggered only when the tampering/defect finding is derived from a test report; it has no application where tampering is visibly patent at inspection, distinguishing Mohd. Sagir and Amrawati Devi (ambiguous, test-report-dependent tampering).

LEAD AUTHORITIES *Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.*; *K.C. Ninan v. Kerala State Electricity Board & Ors.*

SCJ_064 · Santosh Preservation Pvt. Ltd. & Anr. 2023 All HC

Q-50 Interest corollary of retention 1 case

Interest on a sum wrongfully retained/evaded (e.g. under Clause 8.1 of the Supply Code) is compensatory, not penal or confiscatory.

LEAD AUTHORITIES *Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors.*

SCJ_055 · Hind Industries Limited 2011 All HC

Q-51 Interim order lapses on expiry 1 case

A time-bound interim protection order automatically lapses on expiry of its term; a consumer cannot rely on its continued existence, or on an unrelated pending application, to justify years of non-payment of an assessed sum.

SCJ_055 · Hind Industries Limited 2011 **All HC**

Q-52 Interim protection preserving pre existing uninterrupted supply 1 case

On a prima facie challenge to a Clause 4.27 registration/100% base-demand-charge demand, the Court stayed the licensee's communication and directed that the industrial consumer continue to receive the uninterrupted supply at scheduled rates it had enjoyed under the 2004 Industrial Policy since 2004 - an interim arrangement leaving the merits open.

SCJ_1975 · Sisco Industries Ltd. 2012 **All HC**

Q-53 Ipc 405 406 entrustment 1 case

Not a Supply Code / electricity case. A Section 482 Cr.P.C. petition to quash a criminal complaint of breach of trust (IPC ss.406/405) against the former Executive Chairman of a retail chain over an unpaid food-supply bill

SCJ_044 · Kishore Biyani 2024 **All HC**

Q-54 Licensee bears burden of proving retained charges 1 case

Deposits taken as part of the estimate are refundable unless the licensee proves the actual expenditure reasonably incurred; unproved heads must be refunded.

SCJ_002 · Suman Engineering and Chemicals Pvt. L... 2023 **All HC**

Q-55 Licensee duty to maintain supply and avoid imbalance 1 case

A licensee must maintain the requisite supply and not create a load imbalance; a technical complaint of over-loading is to be audited and decided by the competent authority after notice to affected parties.

SCJ_220 · Mohammad Rashid & Another 2014 **All HC**

Q-56 Mandatory pretesting notice final by slp dismissal 1 case

The mandatory seven-day pre-testing notice requirement (Amrawati Devi) is now final law, the Supreme Court having dismissed the SLP against it; non-compliance renders the test report unusable.

LEAD AUTHORITIES *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.*

SCJ_071 · Venus Stone Crushing Co. & Anr. 2012 **All HC**

Q-57 Mere signature on application is not consent 1 case

A mere signature of the owner on the tenant/lease-holder's connection application does not amount to consent unless expressed in such terms.

SCJ_269 · Ujala Kumar @ Ujala Singh 2014 **HC**

Q-58 Minimum charges only if consumer at fault 1 case

Minimum consumption/guarantee charges for a disconnection period are chargeable only if the disconnection is attributable to the consumer's own fault; a licensee-caused or unresolved-fault disconnection cannot ground such a demand.

SCJ_059 · Modern Rice Mill 2011 **All HC**

Q-59 No article 227 interference with concurrent injunction refusals 1 case

Where the trial and appellate courts have concurrently refused a temporary injunction on a proper appreciation of prima facie case, balance of convenience and irreparable injury, and a statutory remedy exists, the High Court will not interfere under Article 227.

SCJ_2193 · Sonpal Singh 2018 **All HC**

Q-60 No charge when supply fails by licensee fault 1 case

Minimum-guarantee (and like) charges cannot be levied for a period in which supply failed for a reason attributable to the licensee; the obligation to pay is tied to the licensee's maintaining the minimum standard of supply.

LEAD AUTHORITIES *Raymond Ltd. v. M.P. Electricity Board*

SCJ_030 · Harihar Cold Storage 2011 **All HC**

Q-61 No mandamus to enforce order without jurisdiction 1 case

A writ court will not issue a mandamus to enforce an order that is without jurisdiction and a nullity.

SCJ_262 · I.G. Shoes Pvt. Ltd. 2016 **All HC**

Q-62 No negative equality in electricity supply decisions 1 case

A licensee's prior mistaken/inadvertent supply of another similarly-situated consumer via a non-compliant route cannot be invoked to compel repetition of that illegality for a different consumer — Article 14 does not guarantee negative equality.

LEAD AUTHORITIES *Chandigarh Administration v. Jagjit Singh; State of Orissa v. Mamata Mohanty*

SCJ_123 · Sigma Castings Ltd. & Another 2013 **All HC**

Q-63 No promissory estoppel against statute 1 case

The licensee could not be held to a surcharge-exemption promise that would breach Section 24 of the Reforms Act; there is no estoppel against a statute, and a concession can be withdrawn in public interest.

LEAD AUTHORITIES *Sharma Transport v. Government of A.P.*

SCJ_155 · Saini Alloys Pvt. Ltd. 2006 **All HC**

Q-64 No series of provisional bills without statutory basis 1 case

Provisional assessment bills cannot be issued serially in the absence of a provision in the Act or the Code; provisional billing under Clause 6.2(b) is confined to cases where the meter reading cannot be taken, and regular-bill disputes lie under Clause 6.5.

SCJ_231 · Vineet Plastics Ltd. 2014 **All HC**

Q-65 Not a consumer qua transmission lines s.2(72) 1 case

Transmission lines are not part of a licensee's distribution system (s.2(72)), so a person affected by a transmission-line accident is not a 'consumer' (s.2(15)) for that purpose.

SCJ_256 · Suresh Chand Bansal 2014 **All HC**

Q-66 One time settlement finality 1 case

Acceptance of a licensee's One Time Settlement covering all pending disputes estops the consumer from later reviving any one of those disputes.

SCJ_068 · Three Star Paper Mills Pvt. Ltd. 2018 **All HC**

Q-67 Owner lessor liable for electricity dues despite third party operation 1 case

The liability for dues under the demand notice and citation was fixed on the owner/lessor in whose name the connection stood, notwithstanding termination of the dealership and Hindustan Petroleum's running of the outlet.

SCJ_1269 · Ashok Kumar Ajmera 2012 All HC

Q-68 Owner objection to supply requires dm permission rule 3b 1 case

Where an owner objects to a licensee laying/supplying over his premises, the licensee must obtain the DM's/Commissioner's permission under the proviso to Rule 3(b) of the Works of Licensees Rules, 2006; a connection cannot be forced over the objection without it.

SCJ_222 · Daya Nand Sharma 2022 All HC

Q-69 Panchayat raj act pradhan removal enquiry 1 case

Not an electricity/Supply Code case — a U.P. Panchayat Raj Act ruling on the preliminary/fact-finding enquiry procedure required under the proviso to Section 95(1)(g) before a District Magistrate may cease a Gram Pradhan's financial and administrative powers pending a removal proceeding

SCJ_140 · Usha Devi (Smt.) 2014 All HC

Q-70 Part deposit stay of recovery without prejudice 1 case

Recovery under the citation was stayed on a part-deposit (Rs.35,000 against Rs.75,220) without prejudice to the parties' rights; the interim indulgence did not entitle the petitioner to a merits adjudication in the writ.

SCJ_1270 · Ram Charan 2015 All HC

Q-71 Plea of jurisdiction can be raised at any stage 1 case

A plea that the civil court lacks jurisdiction (here under s.145) can be raised at any stage of the proceedings, even after years, since every court must satisfy itself of its jurisdiction.

SCJ_207 · Executive Engineer, Distribution Divis... 2017 All HC

Q-72 Premises definition scope of recovery 1 case

The Supply Code's 'premises' definition (area/portion sanctioned to a single consumer) bounds the scope of recovery/sealing against a defaulting consumer; disputes about whether a third party's distinct premises were wrongly included are fact-specific and go to the recovery authority (Collector), not the writ court.

SCJ_052 · Birla Aircon 2012 All HC

Q-73 Premises is area for which connection sanctioned clause 2.2(ss) 1 case

'Premises' is the specific area/khasra for which a single consumer's connection was applied for or sanctioned; later-acquired contiguous plots are not part of it merely by adjacency.

SCJ_230 · KPB Metals Private Limited 2022 All HC

Q-74 Prior judicial admission of alias bars mistaken identity defence 1 case

A consumer's own prior judicial admission (in a separate proceeding) that a disputed name is his alias precludes a later mistaken-identity defence against a recovery citation issued in that name — an evidentiary/estoppel point in the theft-recovery enforcement context.

SCJ_144 · Vinay Kumar Singh 2020 All HC

Q-75 Protective condition on load enhancement does not override court stay 1 case

A bank-guarantee condition that operates only because the consumer voluntarily sought enhanced load does not nullify or override the court's stay of the underlying assessment.

LEAD AUTHORITIES *Cauvery Water Disputes Tribunal, In re*

SCJ_255 · Suvidha Engineers India Ltd. 2009 All HC

Q-76 Reasonable return via sixth schedule reverse application 1 case

A licensee is entitled to a reasonable return; where the purchase price is disputed, reverse application of the Sixth Schedule principles is an appropriate method of determining the rate.

SCJ_156 · Noida Power Company Ltd. 2005 All HC

Q-77 Recall of order requires disclosed statutory basis 1 case

An assessing officer who withdraws/recalls a demand order during pending litigation must disclose the statutory power (under the Electricity Act or Supply Code, 2005) exercised to do so; failure to do so is prima facie misconduct.

SCJ_092 · Navi Hasan 2022 All HC

Q-78 Registered post to recorded address deemed sufficient service 1 case

Service of a demand notice by registered post to the address on the licensee's records is deemed sufficient under Explanation 1 to s.3 of the 1958 Dues Recovery Act, regardless of a bare denial of receipt.

LEAD AUTHORITIES *Vishanji Tokarsi v. Collector, Kanpur Nagar*

SCJ_122 · Shyam Ferrous Ltd. Gopal Nagar 2015 All HC

Q-79 Regulator cannot change rules at truing up 1 case

A Regulator cannot, at the truing-up stage, change the methodology or principles of the initial tariff determination; doing so is an impermissible retrospective revision of a quasi-judicial tariff order.

LEAD AUTHORITIES *PTC India Ltd. v. CERC*

SCJ_010 · BSES Rajdhani Power Ltd. 2022 SC

Q-80 S.11 confined to existence of arbitration agreement 1 case

A Section 11 court does not decide whether a Supply Code penalty must go to the Clause 7.10 CGRF/Ombudsman; it only asks whether an arbitration agreement exists, leaving the Code-forum objection to the arbitrator.

LEAD AUTHORITIES *M/S Mayavati Trading Pvt. Ltd. v. Pradyut Deb Burman*; *Duro Felguera, S.A. v. Gangavaram Port Ltd.*; *GOQII Technologies Pvt. Ltd. v. Sokrati Technologies Pvt. Ltd.*

SCJ_274 · Ambuja Cements Limited 2026 All HC

Q-81 S.156 3 crpc tree felling dispute 1 case

Not a Supply Code case — a criminal revision against dismissal of a Section 156(3) Cr.P.C. application seeking registration and investigation of an FIR over an alleged forged consent letter used to fell a jointly-owned mahua tree on agricultural land, with allegations of threats by co-sharers..

SCJ_118 · Shiv Murti Yadav 2014 All HC

Q-82 S.434 ipc quashing application 1 case

Not a Supply Code case — a Section 482 Cr.P.C. application seeking quashing of a charge-sheet under s.434 IPC (mischief by injury to a public road/bridge, in the nature of dishonest damage), arising from a dispute over demolition of the applicant's house pursuant to encroachment-removal proceedings

SCJ_109 · Rakesh Kaushik 2016 **All HC**

Q-83 Scheduled rostering competence regulatory commission vs load dispatch centre 1 case

The petitioner contends that the power to provide protective-load facility and to schedule rostering vests solely in the Electricity Regulatory Commission and cannot be exercised by the Load Dispatch Centre under Section 31 of the Electricity Act, 2003, and that 'optimum scheduling' does not amount to 'scheduled rostering' under Section 32.

SCJ_1988 · Ranjeeta Cold Storage & Ice Plant 2016 **All HC**

Q-84 Seb contract corruption ministerial interference 1 case

Not a Supply Code case — a criminal appeal against acquittal on charges of criminal conspiracy, criminal breach of trust, and corruption (IPC ss.120-B/409)

SCJ_141 · V.S. Achuthanandan 2011 **SC**

Q-85 Security cheque matures on accrual of underlying debt 1 case

Establishes that a 'security' cheque issued at the outset of a Power Supply Agreement matures into an instrument for a legally enforceable debt once electricity is actually supplied and billed and payment defaults, distinguishing Indus Airways (no debt ever arose) and aligning with the Sampelly/Sripati Singh line — a significant precedent for electricity-dues enforcement via s.138 NI Act prosecutions,...

LEAD AUTHORITIES *Sampelly Satyanarayana Rao v. Indian Renewable Energy Development Agency Ltd.*; *Sripati Singh v. State of Jharkhand*; *Indus Airways Private Ltd. v. Magnum Aviation Private Ltd.*

SCJ_132 · Sunil Todi & Ors. 2021 **SC**

Q-86 Security vs debt characterisation is a triable defence 1 case

Whether a cheque was truly non-presentable security or secured an existing/maturing liability is a disputed question of fact for trial, not resolvable in a s.482 Cr.P.C. quashing petition.

LEAD AUTHORITIES *HMT Watches v. M.A. Habida*; *M/s Womb Laboratories Pvt. Ltd. v. Vijay Ahuja*

SCJ_132 · Sunil Todi & Ors. 2021 **SC**

Q-87 Serc mandatory legal member not mandatory judicial chairperson 1 case

Landmark Electricity Act institutional-architecture ruling: s.84(2) enabling (not mandatory) as to a judicial Chairperson, but mandatory legal/judicial Member requirement for any SERC exercising adjudicatory functions — foundational for any future case in this corpus touching SERC composition or the validity of Commission-level adjudicatory orders.

LEAD AUTHORITIES *Union of India v. Madras Bar Association (MJ-I)*; *Madras Bar Association v. Union of India (MJ-II)*; *Tamil Nadu Generation and Distribution Corporation Ltd. v. PPN Power Generating Company Pvt. Ltd.*

SCJ_130 · State of Gujarat & Ors. 2018 **SC**

Q-88 Supervision charges on a fresh connection 1 case

A consumer sought a writ that it was not liable to pay more than 15% supervision charges under the U.P. Electricity Supply Code, 2005 and to quash intimations to that effect..

SCJ_1283_S · Sandeep Bobbins 2014 **All HC**

Q-89 Temporary supply classified by purpose not duration 1 case

Supply for construction/civil work is 'temporary' under LMV-9 Part C by reason of its purpose and defined period, not its load or how long it actually ran; it attracts the appropriate schedule's rate plus 25%.

SCJ_166 · Hyundai Engineering and Construction C... 2013 All HC

Q-90 Transmission line cannot be stopped for want of compensation 1 case

Construction of transmission power service lines cannot be stopped for want of payment of compensation; the remedy is a direction to the competent authority to determine and pay compensation to the tenure holders over whose land the towers are erected.

SCJ_2193 · Sonpal Singh 2018 All HC

Q-91 Transmission scheme siting dispute 1 case

Not a Supply Code case — a dispute over the siting/alignment of high-voltage transmission towers under ss.28/29 of the Electricity (Supply) Act, 1948, brought by a landowner (a business school trust) who purchased land and built on it more than 14 years after the transmission scheme was notified

SCJ_097 · Orissa Power Transmission Corporation ... 2013 SC

Q-92 Withdrawal to supply code remedy 1 case

A writ challenging a licensee demand of Rs. 20,20,306 was dismissed as withdrawn after the consumer elected to pursue any remedy under the U.P. Electricity Supply Code, 2005. Sums paid under interim orders were to be adjusted against pending bills. The demand was not examined on merits.

SCJ_1547 · S.R. Preservation Pvt. Ltd. 2018 All HC

Q-93 Withdrawal with liberty to supply code authority 1 case

Writ petition dismissed as withdrawn, with liberty to the petitioner to approach the authority under the Uttar Pradesh Electricity Supply Code in accordance with law. The Court did not examine the electricity dispute on merits.

SCJ_403 · Nisar Ahamad 2025 All HC

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